

THIRTY-SEVENTH REPORT OF THE SECRETARY GENERAL TO THE PERMANENT COUNCIL ON THE MISSION OF THE ORGANIZATION OF AMERICAN STATES TO SUPPORT THE PEACE PROCESS IN COLOMBIA (MAPP/OAS)

The following report is submitted pursuant to resolution CP/RES. 859 (1397/04), through which the Permanent Council of the Organization of American States (OAS) requests the Secretary General to report periodically on the work of the Mission of the Organization of American States¹ to Support the Peace Process in Colombia (MAPP/OAS or the Mission).

The information² encompasses the findings obtained between January 1 and June 30, 2024, a period during which 858 field missions were conducted in 217 population centers in 107 municipalities in 23 departments of the country. These population centers included municipal capitals, administrative districts (*corregimientos*), villages, indigenous reserves, and community councils. During this period, MAPP/OAS teams traveled 155,823 kilometers by land and 788 kilometers by river.

The MAPP/OAS pursues its mandate thanks to the trust and constant support of the international community, which recognizes the Mission as a relevant actor in peace building in Colombia. The OAS General Secretariat (GS/OAS) is grateful to the member states and observers, especially those that are members of the Basket Fund (*Fondo Canasta*)—Canada, Chile, Germany, Ireland, Italy, the Netherlands, Spain, Sweden, Turkey, the United Kingdom, and the United States—whose political and financial support make it possible for the Mission to operate. It would also like to thank Norway and Switzerland for their contributions, which strengthen the work of the MAPP/OAS in fundamental areas such as participation and dialogue. It likewise thanks the Governments of Argentina, Germany, and Switzerland for the assignment of professionals who, by being seconded to the mission,³ contribute to the country with their vision, values and expertise.

1. GENERAL CONSIDERATIONS

On May 30, the MAPP/OAS mandate was renewed until January 24, 2027 with the signing of the Ninth Additional Protocol to the Agreement between the Republic of Colombia and the Organization of American States (OAS). The GS/OAS thanks the Government of Colombia for the support and trust placed in its work, which allows it to continue supporting peace policies in the country. It also reaffirms its commitment and that of the OAS to support institutions and communities,

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1. The mandate of the MAPP/OAS derives from the agreement reached by the Government of the Republic of Colombia and the General Secretariat of the OAS on January 23, 2004 and resolution CP/RES. 859 (1397/04) adopted by the Permanent Council on February 6, 2004. The mandate has been expanded and extended nine times, most recently on May 30, 2024, extending the duration of the Mission until January 24, 2027.
 2. This report uses general categories such as public servants, minors, Colombians, teachers, settlers, members of armed groups, among others, in order to facilitate the reading of the text. However, it is essential to clarify that these terms include women, men, boys, girls, adolescents, persons belonging to ethnic communities, persons with diverse sexual orientations, and persons with disabilities. This caveat is made in recognition of, and respect for, differential approaches, highlighting the importance of their mainstreaming for understanding and adequately serving all these populations.
 3. In this way, countries commission professionals of their nationality to perform functions for a specific period of time.

especially those most affected by the armed conflict, in their efforts and initiatives to achieve complete peace in Colombia.

This renewal of its mandate also coincides with the commemoration of the Mission's 20 years of uninterrupted presence in Colombia, during which time it has established itself as a useful, innovative, and highly adaptable cooperation tool that supports public peace policies through monitoring, backing, technical assistance, and capacity building. In carrying out its functions, the MAPP/OAS has acted in accordance with the principles of autonomy, impartiality, and flexibility, as well as with an attitude of respect for institutions and communities at the national and local levels, which has allowed it to build trust in the territories in which it has operated.

Since 2004, the Mission has witnessed the resilience of communities and victims of the armed conflict, as well as the efforts made by successive national governments to strengthen peace-building in the country. In this regard, MAPP/OAS contributions have focused on supporting disarmament and demobilization processes, the implementation of the Final Peace Agreement (*AFP*), the verification of ceasefires, citizen participation, the creation and development of transitional justice mechanisms and agreements to bring armed groups (AGs) to justice,⁴ as well as monitoring security conditions in the territories. The value of these contributions was highlighted by the Minister of Foreign Affairs of the Republic of Colombia, the Vice Minister of Multilateral Affairs of the same country, and members of the international community during the fifty-fourth regular session of the OAS General Assembly held in June in Asunción, Paraguay.

During the first half of 2024, the OAS conducted high-level visits to Colombia as part of its firm and resolute commitment to the country. In April, the Secretary General arrived in Bogotá to meet with the President of the Republic and his government team. The conversation focused on the progress and challenges of the Total Peace policy, reiterating, among other issues, the Organization's support for the implementation of the *AFP*. In addition, the Secretary General presided over the commemoration of the 76th anniversary of the OAS at the Colegio Gimnasio Moderno, where the Pact of Bogotá, the charter that gave rise to the Organization, was signed in 1948.

In this report, the GS/OAS recognizes that the national government remains committed to strengthening governance and to the constant search for options to resolve the challenges and threats to the Total Peace policy. In this framework, it highlights actions such as the signing of immediate-implementation territorial agreements during round table peace talks (*MDP*) with AGs; the installation of the *MDP* with the Segunda Marquetalia Bolivarian Army⁵; the announcement of a "Shock Plan" to accelerate the implementation of the *AFP* in the next two years⁶; and the start of Co-Construction of Territorial Peace in Nariño with the Comuneros del Sur Guerrilla Group (*FGCS*). The MAPP/OAS is supporting the latter process as part of the high-level advisory committee with the Colombian Episcopal Conference.

In addition, the MAPP/OAS continued to provide ongoing support during the peace talks (*MDP*) between the national government and the General Staff of the Commander Jorge Suárez

4. The Mission adopts the concept of armed groups, and construes it as a generic category that combines the denominations contained in legal frameworks (Law 2272 of 2022, and Resolution 036 of 2023), as well as the forms of self-denomination, and recognition in the territories. This concept could be adjusted based on the characterization to be issued by the High Level Body created by Decree 2655 of 2022.

5. On June 24, 2024 in Caracas, Venezuela.

6. According to the speech delivered by the President of the Republic of Colombia before the United Nations Security Council in July.

Briceño, Magdalena Medio, and the Raúl Reyes Front (EM) Blocs (factions)⁷ and to act as the international component of the Mechanism for Oversight, Monitoring, and Verification of the bilateral ceasefire signed as part of this process. The GS/OAS ratifies that the Mission maintains its political and technical support to the peace talks, in accordance with its mandate.

In August, the national government announced the setting up of two new Social and Legal Conversation Forums (*Espacios de Conversación Sociojurídica, ECSJ*) with armed groups. On the one hand, through Resolution 257 of 2024, it authorized the beginning of talks with the Gaitanista Self-Defense Forces of Colombia (Autodefensas Gaitanistas de Colombia, *AGC*)⁸; while, through Resolution 300 of 2024, it started *ECSJ* with the Autodefensas Conquistadores de la Sierra Nevada (*ACSN*). The MAPP/OAS has been invited to accompany both processes, an invitation that it has formally and decisively accepted, placing all its capabilities and experience at the disposal of the parties.

The GS/OAS highlights the work done to expedite the implementation of the agreements reached in previous peace processes, such as those with the extinct United Self-Defense Forces of Colombia and the former Revolutionary Armed Forces of Colombia-People's Army (*Fuerzas Armadas Revolucionarias de Colombia-Ejército del Pueblo*). It also highlights the disposition and willingness of the national government to continue exploring scenarios for dialogue with other AGs in the territories, emphasizing the desirability of redoubling efforts and improving inter-agency coordination between the national, departmental, and municipal levels in order to enhance the effectiveness of peace initiatives.

Society continued to participate in the scenarios and initiatives to territorialize peace building. In the framework of the regional dialogues in Samaniego, Nariño, the civilian population called on the AGs to cease violence and demanded progress from the national government in advancing territorial peace with social investment. In Norte de Santander, the communities signed the Territorial Pact for Catatumbo as an initiative for social and territorial transformation in the region; in Santa Marta, Magdalena, the Mayor's Office led the installation of the Territorial Council for Peace, Reconciliation, and Coexistence, and the election of 36 citizen representatives through a public nomination process. The GS/OAS considers it essential that citizen participation be inclusive and enjoy guarantees of security and autonomy, in order to strengthen citizens' capacity to contribute to the search for peace in a timely and effective manner.

The bilateral ceasefire agreements between the national government and the Central General Staff of the FARC-EP and the National Liberation Army (*ELN*) continued to be implemented and were

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7. The Central General Staff (*EMC*) of the FARC-EP changed its name to the General Staff of the Commander Jorge Suárez Briceño, Magdalena Medio, and the Raúl Reyes Front (EM) Blocs. This was a consequence of the fragmentation generated within the armed group as a result of dissent over its continued participation in the *MDP* following the suspension by the national government of the Bilateral and Temporary National Ceasefire with Territorial Impact (*CFBTNT*) in Cauca, Nariño, and Valle del Cauca. Thus, as of July, the bodies that decided to remain in the peace talks process chose this name, which was adopted by the national government in Decree 0888 of 2024 extending the *CFBTNT* until October of the current year. More information on these developments can be found below in the section entitled "Security conditions associated with the presence and actions of armed groups".
 8. On February 24, this AG published a video in which it called itself the Gaitanista Army of Colombia, replacing its previous and original self-designation as the Gaitanista Self-Defense Forces of Colombia (*AGC*). Additionally, some state institutions identify it as Clan del Golfo and others continue to use the name *AGC* (for example, in Resolution 257 of 2024). In this report, the Mission will refer to the name it chose for itself: Autodefensas Gaitanistas de Colombia (Gaitanista Self-Defense Forces of Colombia).

extended to the beginning of 2024. However, during the six-month period, tensions arose in the *MDP* due to the harm done to the civilian population that led to the partial or total suspension of these agreements.

In March, the Bilateral and Temporary National Ceasefire with Territorial Impact (*CFBTNT*) between the national government and the *EMC* was suspended in Cauca, Nariño, and Valle del Cauca. This situation led to the fragmentation of the AG as a result of internal dissent regarding the continuation of the peace talks process. Even so, the *CFBTNT* remained active in several departments of the country and was extended until October 2024 with the Comandante Jorge Suárez Briceño, Magdalena Medio Comandante Gentil Duarte, and Frente Raúl Reyes Blocs, which continue to take part in the *MDP*.

For its part, the Bilateral, National and Temporary Ceasefire (*CFBNT*) between the national government and the *ELN* remained in effect until August 3, 2024, pursuant to the agreements signed by the parties in the *MDP*. However, since February these roundtable talks have been frozen due to differences between the parties on issues such as the recognition of the *ELN*'s political status, perceptions of non-compliance, or slow progress with implementation of agreements,⁹ and the initiation of a territorial peace process in Nariño with the *FGCS*.

Despite the implementation of the bilateral ceasefire agreements, the MAPP/OAS heard that some communities and local authorities perceive a deterioration in security conditions, which has undermined confidence in the peace dialogue process. In departments such as Antioquia, Caquetá, Huila, Meta, and Tolima, the governors and territorial authorities requested the national government to suspend the *CFBTNT* throughout the country and to increase the presence of the security forces in their territories, arguing that the civilian population is being affected more severely.

Through the MAPP/OAS, the GS/OAS noted ongoing violations by the AGs of the life, liberty, integrity, security, and property of the civilian population. These developments continued in the form of violations of the autonomy of social and ethnic leaders and organizations, as well as impediments for their institutional work. Ongoing actions by the AGs and their effects on the communities continue to impair the access and participation of the victims in the Comprehensive System of Truth, Justice, Reparation, and Non-Repetition, as well as limit the contributions of participants, witnesses, and others appearing before the Special Jurisdiction for Peace.

In turn, the AGs continued to impose restrictions on communities in terms of citizen coexistence, mobility, and the autonomous exercise of political rights. Their aim was to exert influence over the territories and project a political profile in connection with the peace talks with the national government. In the departments of Antioquia, Cauca, Caquetá, Córdoba, Chocó, and La Guajira, the groups increased their involvement in matters related to the provision of public services and, exploiting resentment for the alleged absence of state institutions, offered to repair and build aqueducts, churches, health posts, educational institutions, and public parks, as well as to carry out productive projects.

Although the GS/OAS recognizes that the Colombian State is designing and implementing intersectoral strategies to prevent forced recruitment and the use and utilization of children and adolescents, as well as sexual violence against them, the AGs continued to recruit minors as young as 12 years of age. The Mission heard of cases of this type in the departments of Arauca and Cauca; in the

9. For example, the implementation of Agreement No. 26 "Creation of the Multi-Donor Fund for the peace process with the *ELN*".

regions of Catatumbo, southern Bolívar, Telembí, and Sanquianga; and in the municipality of Samaniego in Nariño.

Also of concern is the continued violation by the armed groups of the protective environments of children and adolescents, as occurred in the ethnic territories of Caquetá, Cauca, and Chocó, where children and adolescents were forcibly recruited while they were in their homes; and in the departments of Caquetá, Guaviare, and Meta and the regions of Bajo Cauca Antioqueño, northern Cauca, and southern Valle del Cauca, where adolescents were taken from their classrooms.

The progress of peace initiatives, talks, and dialogues between the national government and the AGs affords an opportunity to advance the design of strategies aimed at eliminating these negative impacts on children and adolescents, by incorporating territorial proposals developed by ethnic authorities and social leaders to ensure that children and adolescents are no longer involved in the conflict. Such measures are to include the restoration of rights, comprehensive reparation, reincorporation or reintegration, and psychosocial support with a differential approach to underage victims.

On the other hand, the GS/OAS draws attention to the activation of explosive devices launched from or installed in vehicles and motorcycles and the use of drones by the AGs to attack the security forces in departments such as Cauca, Nariño, and Valle del Cauca, actions which, due to the indiscriminate impact of these methods, also affected the population and civilian property.

Halfway through the presidential term and in light of the intensification of the armed conflict in some territories, the GS/OAS reiterates its call to the national government and the armed groups to insist on efforts to maintain all forms of peace talks, focusing on the protection of the civilian population, the prevention of violence in the context of the armed conflict, and respect for International Humanitarian Law (IHL) and human rights. It is imperative to provide security guarantees to the communities and guarantees of non-repetition for the victims. It also invites different social, political, and economic sectors, and the international community to support all peace initiatives and the resolution of disputes.

The GS/OAS views with hope and realism the progress made by the national government in implementing the Total Peace policy. Consolidating what has been achieved requires actions such as taking stock of the initiatives, conversations, and dialogues with the AGs about the country, especially society; reviewing and adjusting the ceasefire models, taking territorial contexts into account; implementing the humanitarian commitments and agreements signed; and establishing agendas that consider issues such as the end of the armed conflict and the definitive cessation of the forced recruitment of children and adolescents and of other harm done to the civilian population. All of the above would strengthen the communities' trust, legitimacy, and ownership of the initiatives, conversations, and peace talks, as well as foster the collective determination and involvement of diverse actors in the territories.

In addition, the MAPP/OAS continues to provide political support and knowledge in the implementation, design, and improvement of existing and future legal frameworks as a fundamental element of peace building and as a prerequisite for ensuring that policies are legally viable and sustainable. In line with the XXXVI Semiannual Report, this issue is particularly important in talks such as those held in the *ECSJs* in Medellín and the Aburrá Valley, Buenaventura, and Quibdó, since it will provide clarity for the transition to legality of members of urban AGs and will help boost priority objectives such as the reduction of violence in these territories.

Nineteen years ago, the Justice and Peace Law was enacted as the first transitional justice instrument in Colombia. Meanwhile, the Mission has accompanied, monitored, and provided technical assistance for its implementation. The GS/OAS acknowledges the victims, the underlying tenets, the participants, and the institutions, especially the judicial operators, whose work and continuous contributions enhance the possibilities of building peace with justice and guarantees of non-repetition.

All of Colombia's accumulated experience in transitional matters, with its achievements and challenges, affords a key resource for energizing existing mechanisms and developing future models that guarantee the investigation and punishment of serious violations of human rights and IHL, as well as the recognition of victims and their right to truth, justice, comprehensive reparation, and guarantees of non-repetition.

In October, Colombia will host the Conference of the Parties to the Convention on Biological Diversity (COP16), which represents an opportunity to contribute its experiences and knowledge to the international debate and to join forces to help overcome the country's environmental protection challenges. The GS/OAS, through the MAPP/OAS and other entities of the Secretariat, welcomes the Colombian State's efforts to prevent deforestation and preserve biodiversity in contexts of armed conflict and encourages the international community and the private sector to decisively support, politically and economically, the territorial transformations required to achieve peace with criteria of sustainability and environmental justice.

In view of the extension of the MAPP/OAS mandate until 2027 and the new institutional challenges that this entails, especially in the performance of roles in ongoing peace initiatives, talks, and dialogues, the GS/OAS extends a call to all countries backing peace in Colombia to coordinate efforts to bolster or explore new cooperation scenarios that will strengthen the Mission's technical and operational capabilities.

Finally, it reaffirms its gratitude to the Basket Fund member countries –Canada, Chile, Germany, Ireland, Italy, the Netherlands, Spain, Sweden, Türkiye, the United Kingdom, and the United States– and to the Mission's partner countries –Argentina, Norway, and Switzerland– for their political and financial support, which has allowed the Mission, over the last 20 years, to remain in the territories most affected by the armed conflict, crime, and inequity, in support of the communities and the institutional framework. It also invites them and the member states and observer countries of the OAS to continue to join efforts and redouble their political, technical, and financial support to the MAPP/OAS to continue working for the construction of a Comprehensive Peace in Colombia.

2. SECURITY CONDITIONS ASSOCIATED WITH THE PRESENCE AND OPERATION OF ARMED GROUPS

The information in this section is the result of MAPP/OAS monitoring of security conditions and refers to the actions of the Central General Staff (*EMC*) of the FARC-EP, the National Liberation Army (*ELN*), the Gaitanista Self-Defense Forces of Colombia (*AGC*), the Second Marquetalia-Bolivarian Army (*SM-EB*), the Conquistadores de la Sierra Nevada Self-Defense Forces (*ACSN*), and the Comuneros del Sur Guerrilla Front (*FGCS*). These groups continued to concentrate on territories where they took advantage of drug trafficking,¹⁰ extortion, and illegal mining to finance themselves.

10. The Mission defines drug-related activities as those associated with planting of illicit crops and their processing for the production, transport, and marketing of illicit drugs, which may involve, inter alia, AGs and mafias.

In April, after the suspension of the *CFBTNT*¹¹ between the national government and the EMC in Cauca, Nariño, and Valle del Cauca, this AG split due to internal disagreements regarding its ongoing participation in the *MDP*.

The Comandante Jorge Suárez Briceño, Magdalena Medio Comandante Gentil Duarte, and Frente Raúl Reyes Blocs continued the peace talks. Their presence was most notable in certain regions of Antioquia, Bolívar, Caquetá, Guaviare, Huila, Meta, Norte de Santander, and Putumayo. Meanwhile, the Eastern Joint Command Martin Villa and the Amazon Manuel Marulanda Velez, Central Isaias Pardo, and Western Jacobo Arenas Blocs stopped taking part in the *MDP*. These units were located in municipalities in Arauca, Caquetá, Cauca, Guaviare, Meta, Nariño, Tolima, Putumayo, and Valle del Cauca.

Apart from these splits, the above-mentioned AG developed a number of fronts. The 57th Yair Bermudez Front¹² was created, which appears to be independent of any other group. In northeastern Cauca, these developments led to confrontations between this unit and the Dagoberto Ramos Front of the Jacobo Arenas Western Bloc. In addition, in June there was a split in the Carolina Ramirez Front, which gave rise to the Raul Reyes Front. In the Caquetá River, this last split generates uncertainty due to the impacts on safety conditions based on the relationship between these structures and the type of interaction they will have with the *SM-EB*.

The *ELN* was present in areas of Antioquia, Arauca, Chocó, Cauca, La Guajira, Nariño, Norte de Santander, and Valle del Cauca. In May, the *FGCS*, which operates in Nariño, reported its split from the *ELN* Central Command and expressed its willingness to engage autonomously in a territorial peace dialogue process with the national government.

The *SM-EB*, an AG that includes the Comandos de la Frontera Ejército Bolivariano and the Coordinadora Guerrillera del Pacifico, operated in areas of Caquetá, Cauca, Huila, La Guajira, Nariño, and Putumayo. The *AGC* operated in regions of Antioquia, Bolívar, Chocó, Córdoba, La Guajira, Magdalena, Norte de Santander, and Valle del Cauca. The *ACSN* operated in municipalities in La Guajira and Magdalena, located near the Sierra Nevada de Santa Marta.

In Cauca, Nariño, and Valle del Cauca, the suspension of the ceasefire between the national government and the *EMC* led to an increase in the operations of the Jacobo Arenas Western Bloc in the form of attacks on the security forces,¹³ expansion of its territorial influence, and restrictions on the communities.¹⁴ This was a strategy to prepare for a possible confrontation scenario.

11. On March 17, through Decree 385 of 2024, the national government suspended the Bilateral and Temporary National Ceasefire with Territorial Impact with the *EMC*. The Decree ordered, as of the 20th of that month, "(...) the resumption of offensive military operations and police operations (...) against the units of the Central Command of the FARC-EP present in the departments of Nariño, Cauca, and Valle del Cauca". Available at: <https://lc.cx/3Sofvu>

12. Some hypotheses suggest that this structure originated from a division within the Dagoberto Ramos Front, while others relate it to splits in the Adán Izquierdo Front.

13. The AG used explosives to attack security forces installations such as the Third Brigade of the National Army in Cali and the Police Department Command in Cauca, and led an armed assault on the Police Station in Morales in Cauca.

14. In Cauca, actions were concentrated in Argelia, Buenos Aires, Cajibío, Miranda, Morales, Piendamó, Popayán, Silvia, and Suárez; in Nariño, in Policarpa, Taminango, and Tumaco; and in Valle del Cauca, in Cali, Dagua, and Jamundí.

The use of drones was a new development in attacks by the AGs. In addition to attacking the security forces, drones were used by specialized personnel in connection with territorial disputes between groups in Caquetá, Cauca, and Nariño.

The splits in the AGs pose a challenge for the State and for peace initiatives, talks and dialogue, inasmuch as they may generate greater risks for the civilian population and for those members of the groups that participate in the *MDP* forums or bodies, especially in Caquetá, Cauca, Meta, Nariño, and Putumayo.

In order to strengthen and expand their control over some areas, the AGs engaged in disputes and established partnerships among themselves. The dynamics of these relationships did not follow a single pattern, but varied over time and according to geography.

As regards disputes, in northern Caquetá, *EMC* structures in the *MDP* clashed with the *SM-EB* and in Catatumbo they coexisted with the *ELN* without confrontation.

In addition, *EMC* structures outside the *MDP* and the *ELN* maintained confrontations in the Micay river canyon and in the northeast of Cauca department. Although in Arauca armed confrontations were less frequent, the dispute between these AGs continued to result in homicides and threats to people accused of collaborating with or belonging to the opposing group. In the Sanquianga and Telembí regions of Nariño, *EMC* units outside the *MDP* continued to confront the *SM-EB*, while in the Abades and Cordillera Nariño regions, confrontations took place between the Franco Benavides Front of the Jacobo Arenas Western Bloc and the *FGCS*.

The *AGC* continued to engage in various forms of confrontation in the Sierra Nevada de Santa Marta region against the *ACSN* and in southern Chocó against the *ELN* for control of the San Juan River. In southern Bolívar, Bajo Cauca, and northeastern Antioquia, the dispute continued against the alliance between the *ELN* and *EMC* units in the *MDP*.

Community sheds, educational establishments, means of transportation, and some houses were used during territorial disputes by the AGs to spend the night. The communities also warned that members of the groups sometimes live among the population, increasing the risk faced by civilians.

The security forces resumed offensive military operations in Cauca, Nariño, and Valle del Cauca against *EMC* units outside the *MDP* after the suspension of the ceasefire. Since the occurrence of violent actions by this AG, the communities and civil institutions have proclaimed the need to strengthen prevention and protection of the population in terms of security.

In May, the President of the Republic announced the "Misión Cauca" strategy¹⁵ that seeks to maximize the use of the security forces for military operations, the development of infrastructure, and for comprehensive action.¹⁶ According to the objectives outlined in the strategy, this effort must be rapidly accompanied by comprehensive provision of civil institutions focusing on the social and economic transformation of the department.

15. Office of the President of the Republic (2024) "Palabras del presidente Gustavo Petro, durante el lanzamiento de Misión Cauca" (Speech by President Gustavo Petro during the launching of Misión Cauca). Available at: <https://www.presidencia.gov.co/prensa/Paginas/Palabras-del-presidente-Gustavo-Petro-durante-el-lanzamiento-de-Mision-Cauc-240621.aspx>

16. This is construed to mean the set of actions aimed at facilitating the coordination and development of strategies with the objective of consolidating territorial control by the State from the military point of view and from the point of view of civilian institutions.

In Antioquia, Chocó, and Córdoba, by presidential order¹⁷, the security forces intensified their operations against the *AGC*, impacting the military, logistical, and financial capacities of this *AG*.

3. IMPACTS ON THE CIVILIAN POPULATION¹⁸

3.1. Arbitrary and AG-imposed restrictions and penalties

Despite peace initiatives, talks, and dialogues, the AGs continued to impose restrictions on communities, mainly in terms of citizen coexistence, mobility, and the autonomous exercise of political rights. The idea was to exert their influence in the territories and establish a political profile in connection with dialogue and peace talks with the national government.

In addition to the activities mentioned in the XXXIV Semiannual Report,¹⁹ the AGs continued to forcibly regulate citizen coexistence and expanded strategies to disseminate these impositions through videos, billboards, physical, and digital communications, and the coercion of teachers and social leaders.²⁰ Some members²¹ of the groups were specifically designated to handle these issues.

The AGs interfered in conflicts over personal debts and family arguments in El Bagre and Remedios in Antioquia; Montelíbano in Córdoba; Convención, Cúcuta, and Tibú in Norte de Santander; Los Andes and Tumaco in Nariño; Valle del Guamuez in Putumayo; and Jamundí in Valle del Cauca. In Calamar in Guaviare, the groups sought to resolve conflicts between employers and employees by establishing fixed amounts for the wages of those who provide general services in residences and estates.

In addition, the AGs increased their interference in matters related to the provision of public services, exploiting resentment for an alleged absence of state institutions. In the department of Caquetá and municipalities such as Tarazá in Antioquia; Jambaló, Santander de Quilichao, and Toribío in Cauca; Puerto Libertador and San José de Uré in Córdoba; Nóvita in Chocó; and Dibulla in La Guajira, they offered to repair or build aqueducts, churches, health posts, educational institutions, and public parks, and to generate productive projects.

In several communities, the AGs reinforced oversight to ensure compliance with the sanctions imposed. To this end, they resorted to the use of fine payment slips, photographs of forced labor, punishment shifts,²² and the provision of places to confine those who fail to comply with their restrictions.

17. Petro, G. [@petrogustavo]. (2024, February 26). Available at: <https://lc.cx/c32Kip>

18. The Mission construes impacts to mean violent actions, events, and conduct perpetrated in connection with the Colombian armed conflict and criminal behavior threatening the life, liberty, personal integrity, and security of the civilian population.

19. The GS/OAS mentioned the interference of the AGs in matters not resolved by the communities, such as, inter alia, fights and the imposition of card carrying, clinical tests for sexually transmitted diseases, and punishments for theft. Available at: https://scm.oas.org/doc_public/ENGLISH/HIST_23/CP47647E07.docx

20. In departments such as Arauca, Cauca, Huila, and Magdalena; in regions such as Bajo Cauca, Bajo Putumayo, Cordillera de Nariño, and southern Córdoba; and in municipalities such as Santa Rosa del Sur in Bolívar and Jamundí in Valle del Cauca.

21. These members are referred to in the territory as "politicians" or members of the "social commissions" of the AG.

22. In the departments of Guaviare and Valle del Cauca, as well as in the southern region of Meta.

Social leaders, teachers, peace signatories, and residents sometimes intervened to prevent homicides or forced displacements resulting from the sanctions imposed. In these cases, the AGs held them responsible for the behavior of the persons punished or imposed restrictions affecting their life, liberty, and integrity.

In Remedios and Tarazá in Antioquia; Acandí, Alto Baudó, and San José del Palmar in Chocó; and Morales in Cauca, some people went to the AGs seeking to resolve conflicts.²³ In the department of Guaviare; and in the regions of Alta Guajira, northern Cauca, northern Magdalena, and southern Córdoba, the population expressed fear of unfounded accusations by the AGs, highlighting that their intervention in the conflicts was based on assumptions that ended up weakening the social fabric.

The autonomy of social leaders and ethnic authorities continued to be violated by the AGs, through the imposition of affiliation to certain social platforms and participation in meetings, mobilizations, and trainings.²⁴ The AGs attended community or institutional meetings and, in some cases, discredited local initiatives and activities of the Community Action Boards (*Juntas de Acción Comunal, JAC*) and institutions.²⁵

In the departments of Cauca, Guaviare, Nariño, and Putumayo; in the regions of Bajo Cauca, Urabá, and northern Antioquia, Catatumbo, San Juan in Chocó, southern Córdoba, and southern Tolima; and in the municipality of Sardinata in Norte de Santander, the AGs imposed mobility schedules and restrictions on motorcycles and automobiles. Particularly in Caquetá, Chocó, and Putumayo, they declared armed strikes.²⁶

Faced with the possibility of the arrival of an opposing AG,²⁷ the groups took extreme measures to control the transit of strangers and school bus routes, preventing the arrival of agricultural product traders, School Meal Planners, family members of residents who did not live in the same municipality, and the transit of basic food basket products and medicines.²⁸ As a result, some villages were left destitute or depopulated.

In the department of Arauca and in some municipalities²⁹ of Antioquia, Caquetá, Cauca, Guaviare, and Norte de Santander, the AGs identified strangers as collaborators of an opposing group. This led to a perceived increase in disappearances and forced displacements, kidnappings, and

23. Even in villages in the north of Antioquia, children and adolescents threatened their peers with resorting to the AGs to resolve day-to-day conflicts at school.

24. In Bajo Cauca, northern Antioquia, and southern Córdoba, the AGs organized workshops on human rights. In Antioquia, Caquetá, Guaviare, Meta, Nariño, and Putumayo, the groups provided transportation and food for social leaders and communities to participate in mobilizations and meetings.

25. In Ituango in Antioquia, Suarez in Cauca, and Uribe in Meta, the communities expressed fear of taking part in the *JAC* due to their being used by the AGs for their own purposes.

26. The mission construes “armed strike” to mean the pronouncements and actions of AGs over a given period of time, impacting the security conditions of communities and territories and triggering humanitarian consequences such as confinements, forced displacements, and restrictions on mobility.

27. In the departments of Arauca, Caquetá, Cauca, Chocó, Guaviare, and in the northeastern region of Antioquia.

28. Such as gas, gasoline, beverages, perishable foods, and medicines in the regions of Bajo Cauca, Bajo Putumayo, Catatumbo, Cordillera, and Telembí in Nariño, northern Caquetá, northern Cauca, and southern Bolívar; as well as in the municipality of Jamundí in Valle del Cauca.

29. Caucasia, El Bagre, and Ituango in Antioquia; San Vicente del Caguán in Caquetá; Caloto, Miranda, and Toribío in Cauca; El Retorno in Guaviare; and Ocaña and Tibú in Norte de Santander.

homicides. In particular, the brutality, the appearance of corpses in public areas, and the prohibition of their removal generated commotion and exacerbated the fear felt by the communities.

In rivers and tertiary roads, the AGs conducted constant control activities, such as searches of underage students and their school supplies, requests for food bills, cell phone checks, and limitations on the entry and activities of public servants.³⁰

In the departments of Caquetá, Cauca, Guaviare, Huila, Nariño; and in the regions of Bajo Cauca, southern Córdoba and southern Meta, the groups prohibited the communities from interacting with social and environmental organizations, the security forces, judicial authorities, and other institutional actors. In addition, they forced residents and social organizations to obstruct military operations and judicial procedures such as the reception of complaints, arrests, and actions against illegal mining.

3.2. Imposition by the AGs of economic contributions³¹

The AGs continued to demand economic contributions from the civilian population. In territories where more than one group was present, they took advantage of the uncertainty and fear of the communities to pressure them into paying the amounts demanded. In some cases, the victims handed over the money without any idea of the relationship between the person demanding it and any AG, which points to a complex network of actors involved in these demands.³²

This situation impacted licit and illicit activities such as industry, commerce, livestock, migratory flows, productive projects promoted by institutional strategies, illegal mining, illicit crops, and the exploitation of timber resources. In addition, there were constant disputes among AGs over the charges imposed on these activities.

In disputed territories, the victims paid the amounts demanded more than once to several AGs in short periods of time,³³ while in areas with the presence of a single group, the payments were subject to fixed terms and amounts, a practice that served to normalize the demands.

With the decline of other illicit economies, these demands became one of the main sources of financing for the AGs. The groups expanded the victim population and the products subject to arbitrary contributions, established the amounts to be paid, and imposed collection cycles of approximately 10 to 90 days, depending on the economic characteristics of the affected communities.³⁴

30. In Vistahermosa in Meta, the AGs imposed the payment of a "safe-conduct" fee for the entry of some entities into the territory, the value of which varied depending on the number of public servants entering. In addition, they forced people to carry their ID card and fined them COP\$200,000 if they did not.

31. This refers to the AGs' practice of forcing the civilian population to make economic contributions, in order to obtain illicit profit or some kind of benefit.

32. They include persons posing as an AG, persons deprived of their liberty, or criminal groups related to an AG.

33. In the departments of Cauca and Nariño; and in the municipalities of Cáceres in Antioquia and Tame in Arauca.

34. In the department of Cauca, the amount demanded by the AGs depending on the size of the commercial premises involved. Above all, in the municipality of Corinto, social leaders forced to attend meetings called by the AGs had to lend "economic support" when they arrived at these meetings. In Novita in Chocó, the monthly fee imposed on miners was changed to a fee for each "wash" needed to separate clay and gold. In Uribe in Meta, the groups imposed contributions on people with assets equal to or greater than COP\$20,000,000 and charged according to the value of their properties.

The charges were in addition to the arbitrary sanctions imposed by the AGs in connection with the regulation of environmental and coexistence conflicts, as well as restrictions on mobility.³⁵ With these measures, the groups ended up imposing financial contributions on almost everyone in a community, including the education sector³⁶ and environmental programs.

In the departments of Guaviare and Meta and in the Catatumbo region, individuals who sold real estate paid between 5% to 10% to the AGs. The miners and traders were also forced by the groups to pay additional money for the delivery of gifts and public works to the communities. Particularly, in Guaviare, the AGs charged COP \$10,000 for every hen reared; and in the municipality of Uribe in Meta, they extorted annual payments of COP\$1,000 for each tree planted.

The AGs continued to use violence against people who refused to pay economic contributions through bomb attacks on commercial premises, kidnappings of family members or workers, vehicle thefts, cattle rustling, homicides, and the temporary closure of commercial establishments. In addition, civilians were forcibly displaced in retaliation for requests from the victims to reduce the amounts and as a result of the economic hardship caused by the high sums demanded.

3.3. Forced recruitment, use and abuse of children and adolescents, and sexual violence against them

The Intersectoral Commission for the Prevention of Recruitment, Use, Abuse, and Sexual Violence against Children and Adolescents (*CIPRUNNA*)³⁷ presented a document on municipal priorities for the classification and targeting of institutional actions, identifying the 20 municipalities most likely to engage in forced recruitment.³⁸ In some of these municipalities, *CIPRUNNA* provided more than 60 technical assistance services to local authorities in order to strengthen their capacity to implement prevention actions and promote their inclusion in their development plans.³⁹ It also conducted territorial sessions and response plan for Cauca, and proposed preventive measures for the Awá indigenous people in Nariño with the participation of various sectors.

35. In Cumbitara in Nariño, the sexual and reproductive health document demanded by the AGs from women at illegal checkpoints cost COP \$60,000 and was valid for 3 months.

36. In Algeciras in Huila and Jamundí in Valle del Cauca, the AGs imposed economic contributions on the transporters of the School Meals Plan, as well as the transporters of the school bus routes in the department of Arauca.

37. Decree 2081 of 2019 established that the *CIPRUNNA* is made up of 22 entities as permanent members and assigned the role of technical secretariat to the Presidential Advisory Office for Human Rights and International Humanitarian Law. As part of efforts to ensure that administrative activities complement each other, all these entities are engaged in preventing the recruitment, use, and utilization of children and adolescents. Available at:

[https://derechoshumanos.gov.co/consejeria/Documents/Legislacion/Decreto-2081-del-18-de-
Noviembre-2019.pdf](https://derechoshumanos.gov.co/consejeria/Documents/Legislacion/Decreto-2081-del-18-de-Noviembre-2019.pdf)

38. The Municipal Prioritization Index identifies the areas of greatest risk and allows for the classification and prioritization of institutional actions against forced recruitment. Source: Presidential Advisory Office for Human Rights and International Humanitarian Law (2024). "Resultados de la Priorización Municipal para la Prevención del Reclutamiento contra niños, niñas y adolescentes por Grupos Armados Organizados al Margen de la Ley y Grupos Delictivos Organizados 2023." p. 33. Available at: [https://derechoshumanos.gov.co/Areas-Trabajo/ST-CIPRUNNA/Paginas/publicaciones-ST-
CIPRUNNA.aspx](https://derechoshumanos.gov.co/Areas-Trabajo/ST-CIPRUNNA/Paginas/publicaciones-ST-CIPRUNNA.aspx)

39. Office of the President of the Republic (2024). "OFI24-00148981 / GFPU 13050000. Subject: EXT24-00113864 Request for Institutional Achievements Semiannual Report XXXVII MAPP/OAS and Follow-up on Recommendations" p.4

The Colombian Family Welfare Institute (*ICBF*), in coordination with mayors' and governors' offices, promoted the strategy "Together for Children" (*Juntos por la Niñez*), which incorporated goals and strategies⁴⁰ in 185 development plans for the prevention of recruitment, use, and abuse of children and adolescents. In addition, it adapted and strengthened the services and care it provides through *Somos Familia-Somos Comunidad*, *Tejiendo Interculturalidad*, and *el Servicio de Asistencia y Asesoría a la Familia*, with a view to enhancing the capacities of families as care environments and supporting the comprehensive development of children and adolescents as subjects of special protection.

Despite ongoing peace initiatives, talks, and dialogues, the AGs continued to forcibly recruit and use children and adolescents, resulting in other violations of their life, liberty, and integrity. These practices affected minors as young as 12 years old.⁴¹ The Mission learned of cases of children and adolescents enlisted in AGs in the departments of Arauca and Cauca; in the regions of Catatumbo, southern Bolívar, Telembí, and Sanquianga; and in the municipality of Samaniego in Nariño.

The AGs continued to remove children from their protective environments. In Caquetá, Cauca, and Chocó, minors belonging to ethnic groups⁴² were forcibly recruited while in their homes. In the San Juan river in Chocó, suicides of adolescents and young people continued due to their fear of being victims of this recruitment, as a result of disruptions in the territory generated by the presence of armed groups, among other factors.

Likewise, in the departments of Caquetá, Guaviare, and Meta; in the Bajo Cauca Antioqueño and northern Cauca regions; and in the municipalities of Dagua and Jamundí in Valle del Cauca, the AGs used other children to deceive and persuade their peers to leave the classroom and join the group. Similar cases occurred in public parks in Caucasia in Antioquia and Timbiquí in Cauca.

In the regions of Bajo Putumayo, northern Antioquia, southern Cauca, and Telembí; and in the municipality of Calamar in Guaviare, the AGs forced communities to draw up lists with the names and numbers of children and adolescents who would be victims of forced recruitment. All these situations led to school dropouts and forced displacement of families, without formal complaints due to fear of retaliation from the group or the perception of corruption and institutional inefficiency.

Another frequent risk faced by adolescents was that they could be accused by the AGs of collaborating with another group responsible for theft or of being consumers or sellers of illicit drugs. In Catatumbo, these minors were forced to enter places controlled by the groups where they were punished and sometimes enlisted.

40. For example: i) the consolidation of protective environments; ii) increasing the provision of institutional services in the form of cultural, sports, and recreational strategies, promoting the construction of life plans in keeping within the law; and iii) the creation of immediate response teams, as well as the construction of specialized guidelines for responding to the early warnings in force. In 29 departments and 714 municipalities, the *ICBF* convened more than 29,000 children and adolescents to participate in roundtables to learn about their priorities regarding the institutional services provided for peacebuilding and the prevention of recruitment. Source: Colombian Institute of Family Welfare (2024). "Response to request, Institutional Achievements XXXVII MAPP/OAS Semiannual Report."

41. The AGs enlist children and adolescents in order to take advantage of their physical capacities, their lack of interest in engaging in agricultural activities, and their need for economic resources. At the same time, they seek to exploit in their favor the obligations established by national and international norms regarding military operations in areas where the security forces may have knowledge of the presence of minors in camps or locations of armed groups.

42. In indigenous reserves located in the department of Chocó and in the municipalities of Milán and Solano in Caquetá and Caldonio in Cauca.

The AGs employed various strategies to approach minors with a view to forcibly recruiting them. The main ones were the offer of help or benefits in exchange for enlistment,⁴³ the creation of sentimental or friendly relationships, as well as the permanence and residence of their members within the population centers. All of the above served to disguise the violation of the rights of children and adolescents.⁴⁴

In addition, in San José del Guaviare in Guaviare and Tumaco in Nariño, the AGs employed third parties to forcibly recruit children and adolescents under false promises of work and transfer them to training camps. In areas near the Yarí River in the department of Caquetá and in the municipalities of Nechí in Antioquia, Calamar in Guaviare,⁴⁵ Algeciras in Huila, and Puerto Leguísimo in Putumayo, there were camps where the AGs forced child victims to receive political and military training.

In the southern regions of Chocó and the Nariño Pacific; and in the municipalities of Cáceres and Tarazá in Antioquia, Jambaló in Cauca, San Miguel in Putumayo, and Jamundí in Valle del Cauca, the reduction in the marketing of cocaine paste reduced the capacity of the families involved in this activity to access goods and services. In these contexts, the AGs enlisted⁴⁶ children and adolescents by offering stable income or food for family members, which they did only during the first months. Later, the victims were unable to leave the AGs due to threats to their lives and those of their family members.

In order to prevent families, teachers, and social leaders from recovering the child victims, the groups moved them to other areas of the country, as happened when children were moved from Cauca to southern Bolívar and Arauca, and from the border with Ecuador to Cauca and the Sanquianga region in Nariño.

In the departments of Cauca, Guaviare, La Guajira, and Valle del Cauca; in the southern region of Bolívar; and in the district of Santa Marta in Magdalena, the AGs had coercive romantic relationships with girls from the age of 12, which led to their enlistment and had a differential impact on indigenous minors of the Nasa, Misak, and Wayuu peoples. Most of the cases resulted in violence for the purpose of sexual exploitation and labor exploitation to look after commanders or perform domestic work in camps. These practices illustrated ongoing gender-based violence in the context of the armed conflict.

3.4. Contamination caused by Antipersonnel Mines (APM), Unexploded Ordnance (UXO), and Booby Traps (BTs)

In April, the national government, through the Peace Commission Advisor (*Consejero Comisionado de Paz*), declared 16 zones free of suspected antipersonnel mines thanks to humanitarian

43. In the regions of Catatumbo and Sabanas de Yarí in Caquetá; and in the municipalities of Caucasia, El Bague, and Remedios in Antioquia, Alto Baudó and Medio Baudó in Chocó, and Jamundí in Valle del Cauca, the AGs delivered school supplies, Christmas gifts, educational infrastructure, and materials for community works. In the department of Guaviare, adolescents were offered trips to Brazil and Venezuela after enlisting.

44. This is the case in the regions of San Jorge in Córdoba and the Sierra Nevada de Santa Marta.

45. In Guaviare, the AGs allowed forcibly recruited children and adolescents to visit their family members, because they were interested in reinforcing the perception of forced recruitment as a work option and not as a curtailment of rights.

46. The Mission construes enlisting to mean any form of relationship, approach, or approximation to children and adolescents by the AGs, obliging them to fulfill any type of role within or on behalf of the criminal group or structure. Thus, the term “enlist” covers the forced recruitment, use, and abuse (*utilización*) of minors.

demining operations, which meant that 80% of the municipalities in Colombian territory received that certification.

For its part, the Intersectoral Commission for Action against Antipersonnel Mines implemented new methodologies to intervene in areas highly affected by APM that lack the security conditions needed to assign humanitarian demining operators.

In ethnic territories, the Commission implemented two plans, one in Nariño, which focuses on the Awá indigenous communities in Tumaco and the Abades region, and the other in the department of Cauca. In addition, it arranged forums for consultation in Catatumbo to enhance its intervention.⁴⁷

The Office of the Peace Commission Advisor (*OCCP*) reactivated mechanisms such as the National Mine Risk Education Roundtable, the National Victim Assistance Roundtable, and coordination forums with the health sector to ensure appropriate care for APM victims. Together with the Ministry of the Interior, it also developed the Safe Schools strategy in Cauca.⁴⁸

The AGs continued to install APMs around their zones of influence⁴⁹ and limit the arrival of other groups⁵⁰ or the security forces. In both scenarios, the use of improvised explosive devices (*AEI*) continued due to their easy installation, ability to inflict severe damage, and their suitability for building defensive barriers. In the department of Arauca; and in the regions of Bajo Putumayo, northern Antioquia, San Juan in Chocó, southern Bolívar, and southern Cauca, contamination with APM was one of the first actions carried out by the AGs after their arrival in some areas.

There were two forms of UXO contamination. On the one hand, that related to BTs following attacks against the security forces in Anorí in Antioquia, Fortul in Arauca, San José de Guaviare in Guaviare, Los Andes in Nariño, and La Macarena in Meta. On the other, the contamination resulting from clashes between the AGs or between them and the security forces in the department of Guaviare; in the regions of Bajo Putumayo, Catatumbo, Sanquianga; and in the municipality of Jamundí in Valle del Cauca.

The installation of APM and UXO had a damaging psychological impact on the civilian population,⁵¹ hindered access to public goods and services⁵² in Segovia in Antioquia and Argelia in Cauca; impacted subsistence agriculture in the department of Cauca, the southern region of Bolívar, and the municipalities of Barbacoas and Tumaco in Nariño; and affected the uses and customs of ethnic communities in Chocó and Nariño.

47. Office of the Peace Commission Advisor (2024). "*Colombia sin minas, para las comunidades y los territorios*" (Colombia without mines, for communities and territories). Available at: <https://lc.cx/JFy99S>

48. Office of the Peace Commission Advisor (2024). "Progress, achievements and results of the *OCCP*" Semiannual Report 37 Mission to Support the Peace Process in Colombia Organization of American States (OAS) July 31, 2024" pp. 22-23.

49. For example, in the departments of Cauca and Nariño; in the regions of Bajo Putumayo, Catatumbo, northern Antioquia, and southern Bolívar; and in the municipalities of Anorí, El Bagre, and Segovia in Antioquia, Fortul and Tame in Arauca, San Vicente del Caguán in Caquetá, and Colombia in Huila.

50. This was the case in Buenaventura in Valle del Cauca and in Puerto Leguizamón, Puerto Guzmán, and Puerto Asís in Putumayo.

51. Particularly in Istmina, Nóvita, Quibdó, and Sipí in Chocó, Jamundí in Valle del Cauca and Villagarzón in Putumayo, the communities requested psychological care.

52. Due to the installation of APMs in water intakes, sewage systems, electrical towers, educational institutions, community sheds, and health centers.

In addition, the placement of these devices around billboards alluding to the AGs restricted the mobility of the civilian population and services provided by institutions in Istmina in Chocó, Cumbitara, Olaya Herrera and Policarpa in Nariño, Puerto Leguízamo in Putumayo, and Jamundí in Valle del Cauca. The communities expressed their concern about the instability of the installed APMs, as some of them exploded without contact in municipalities such as Cajibío in Cauca.

As a result, the communities reported the loss of the demarcation of hazardous areas, which led to continuous confinement in the regions of Baudó and San Juan in Chocó and the municipalities of Ituango in Antioquia, Argelia in Cauca, Montelíbano in Córdoba, San José del Palmar in Chocó, and Tumaco in Nariño.

The AGs continued to restrict Comprehensive Action Against Antipersonnel Mines activities in the northeastern region of Antioquia and the municipalities of Tumaco and Ipiales in Nariño. However, due to the communities' demand to deactivate IEDs in a controlled manner and to avoid a response from the security forces, the groups deactivated APMs in the Bajo Cauca region and the municipality of Santa Rosa del Sur in Bolívar.

Faced with the difficulty of carrying out operational or humanitarian demining actions, the civilian population engaged in unsafe behavior such as the transfer and handling of IEDs in the regions of southern Córdoba and Sanquianga in Nariño and the municipalities of Tibú in Norte de Santander and Jamundí in Valle del Cauca.

4. INITIATIVES, TALKS AND PEACE DIALOGUES

4.1. Roundtable Peace Talks between the National Government and the Central General Staff of the FARC-EP

The MAPP/OEA reiterates its gratitude to the President of the Republic of Colombia and to the delegations of the national government and the General Staff of the Commander Jorge Suárez Briceño, Magdalena Medio, and Raúl Reyes Blocs for their invitation to permanently monitor the process. It also ratifies its commitment to support the *MDP* (Peace Talks) in matters such as the implementation of the work schedule, the Joint Legal Commission, the Oversight, Monitoring and Verification Mechanism (*MVMV*), as well as in other forums and actions requested by the parties.

During the IV and V Cycle,⁵³ the parties ratified the previous agreements and protocols and signed the agreement on the construction of the agenda for peace dialogues, which established 10 thematic axes. The Mission highlights the actions carried out in the areas of "territorial transformations and immediate implementation agreements", "land and territory", and "environmental peace". It also urges the parties to specify the components of each of the 10 thematic axes, in particular, the "rights of

53. During the IV and V Cycle, the parties signed three agreements, three protocols, and an annex to Protocol II: Special Agreement on territorial transformations in Caquetá, Meta, and Guaviare; Special Agreement on territorial transformations in Catatumbo; Agreement on the construction of the agenda of the Peace Agreement; Communication Protocol to avoid incidents and armed contact between the Central General Staff of the FARC-EP and the Security Forces during the validity of the Bilateral and Temporary National Ceasefire with Territorial Impact (*CFBTNT*); Protocol X Communications and Public Information of the Peace Dialogues Roundtable between the Government of the Republic of Colombia and the Central General Staff of the FARC-EP; Protocol XII Pedagogy of the Peace Dialogues, of the process, agreements, and protocols signed by the National Government and the Central General Staff of the FARC-EP; and Annex to Protocol II on the installation of the first local units of the *MVMV*. Available at: https://www.altocomisionadoparalapaz.gov.co/dialogos_con_EM_FARC-EP

all vulnerable and specially protected populations", "models of justice and victims' rights", and "conflict, security, and weapons".

The designation of AG commanders with decision-making capacity as delegates to the *MDP* represented an opportunity to advance in the negotiation and signing of agreements, protocols, and other activities. As a contribution to victims' rights, the MAPP/OAS, in coordination with the Unit for the Search for Disappeared Persons, arranged with the group's delegates for a humanitarian mission to be conducted in Serranía del Chiribiquete National Natural Park to search for the skeletal remains of victims of forced disappearance. This move opened up the possibility of continuing with this type of work in areas where their units are present.

The delegations extended the Bilateral and Temporary National Ceasefire with Territorial Impact. Through the Joint Legal Commission, progress was made in improving the conditions of detention of persons deprived of their liberty belonging to this AG in the prison and penitentiary complexes of Bogotá and Cúcuta, the Women's Prison in Bogotá, and the Valledupar prison.

In the regions of Catatumbo in Norte de Santander, Sábanas del Yari in Caquetá, and southern Meta, the *MDP* promoted opportunities for social dialogue between institutions, social leaders and organizations, rural communities, and civil and ethnic authorities. These resulted in the installation of inter-agency commissions, which made progress in reaching agreement on investment priorities and territorial transformation as part of the agreements for immediate implementation.

Despite the above, the communities noted slow progress in the materialization of these commitments. In turn, the institutions involved ascertained that the main challenges encountered with implementing the actions agreed upon stemmed from environmental protection regulations.

The municipal and departmental authorities highlighted the persistence of violations to the life, integrity, and freedom of the civilian population; the absence of the security guarantees needed for institutions to go about their work; and violation of the autonomy of social and ethnic leaders and organizations. This has undermined confidence in the progress and weakened the impact of the commitments derived from the peace talks.

The *MDP* faced several challenges: on the one hand, coordination with institutions for the design of regulatory instruments that will allow implementation of the agreements and protocols derived from the 10 thematic axes of the peace dialogue agenda, particularly those related to political participation;

On the other hand, the signing of the "Special Agreement for Participation and Decisions" and the "Protocol for the Participation and Social Oversight of the Population, its Communities, and Organizations", incorporating a methodology with guarantees of autonomy and security for civil society. Likewise, the strengthening of the *MVMV* through the installation of local bodies, as well as compliance with the procedures established to keep to the projected schedule.

The GS/OAS calls on different social, political, and economic sectors and the international community to accompany the process and the resolution of disputes regarding the fulfillment of commitments that guarantee the protection of the civilian population, as well as to support the implementation of the agreements reached at the *MDP*.

4.2. Impact of the implementation of the ceasefire agreements⁵⁴

At the beginning of 2024, the political ceasefire agreements signed by the national government with the *EMC* and the *ELN* were extended, maintaining specific commitments and actions for the protection of the civilian population and respect for IHL.

By means of Decree 104 of 2024 and under the terms established in the VI Cycle of peace dialogues, the President of the Republic extended the term of the Bilateral, National and Temporary Ceasefire (*CFBNT*) with the *ELN* between February 6 and August 3, 2024.⁵⁵ The *ELN* also undertook to suspend kidnappings for financial gain.⁵⁶ However, by means of a public communiqué on May 6, the *ELN* indicated that it was terminating the suspension of this option.

For its part, Decree 0016 of 2024 extended the Bilateral and Temporary National Ceasefire with Territorial Impact (*CFBTNT*) between the national government and the *EMC* until July 15, 2024.⁵⁷

In March, following ongoing harassment of the civilian population by this AG and the murder of indigenous leader Carmelina Yule Pavi,⁵⁸ the national government, through Decree 0385 of 2024, suspended the *CFBTNT* and resumed military operations in Cauca, Nariño, and Valle del Cauca. The attacks and confrontations between the *EMC* and the security forces occurred inside towns in municipalities such as Argelia, Morales, and Suarez in Cauca, and Jamundi in Valle del Cauca.

Partial suspension of the *CFBTNT* led to splits within the *EMC*.⁵⁹ This posed challenges for its implementation in departments where there are group units not participating in the *MDP*, such as Arauca, Guaviare, Huila, Meta, Putumayo, and Tolima. Despite this context, the Oversight, Monitoring, and Verification Mechanism continued to analyze the facts and cases presented by the parties for their certification within the framework of the ceasefire rules and commitments.

The governors offices of Antioquia, Caquetá, Huila, Meta, and Tolima, among other territorial authorities, requested the national government to suspend the *CFBTNT* throughout the country and to

54. The information in this section is the result of MAPP/OAS's monitoring of developments in the territories in compliance with its regular mandate in force since 2004. It covers developments observed in the regions regarding the impact of the implementation of the ceasefires in connection with the peace talks between the Colombian government and the armed groups. Therefore, the perceptions presented are not part of the roles and commitments undertaken by the Mission within the framework of the monitoring and verification mechanisms created for each process.

55. Decree 1117 of 2023 established that the period of validity of the *CFBNT* with the *ELN* ended on January 29, 2024. By means of Agreement N°. 22 of the *MDP* between the national government and the *ELN*, the parties agreed to prolong the ceasefire for an additional 5 days before establishing its extension. Available at:

[https://www.altocomisionadoparalapaz.gov.co/dialogos-eln/Documents/Acuerdo%2022.pdf](https://www.altocomisionadoparalapaz.gov.co/dialogos-eln/Documents/Acuerdo%202022.pdf)

56. Agreement N°. 23 "Extension of the National and Temporary Bilateral Ceasefire". Available at:

<https://www.altocomisionadoparalapaz.gov.co/dialogos-eln/Documents/Acuerdos%20Sexto%20Ciclo.pdf>

57. Decree 1684 of 2023 established the *CFBTNT* between October 17, 2023 and January 15, 2024. Available at: <https://lc.cx/HZI3xw>

58. On March 16, in the midst of attacks by the Dagoberto Ramos Front on an indigenous community that was defending its territory, autonomy, and self-government, indigenous leader Carmelina Yule Pavi was murdered in the village of La Bodega in Toribio in Cauca.

59. As described in the chapter "Security conditions associated with the presence and actions of armed groups" of this report.

increase the presence of the security forces in their territories, arguing that the civilian population is being harder hit.

In the departments of Antioquia, Caquetá, Cauca, Huila, Nariño, and Putumayo; and in the regions of Catatumbo and southern Bolívar, those entities engaged in continuous monitoring of the peace talks process,⁶⁰ including the MAPP/OEA, continued to try and prevent clashes between the security forces and the *EMC* units; to engage in humanitarian efforts that resulted in the release of kidnapped civilians and members of armed groups and members of the security forces captured in clashes; and to recover civilian property.⁶¹

The cease-fire extensions continue to raise the need to strengthen educational efforts with communities, social organizations, and civilian ethnic authorities, by providing information on the rules and commitments undertaken by the parties, the role of civil society, and the functioning of monitoring and verification mechanisms at the national, regional, and local levels.

4.3. Social and legal conversation forums (*ECSJ*) in Buenaventura, Quibdó, Medellín, and the Aburrá Valley

In Buenaventura, Quibdó, Medellín, and the Aburrá Valley, the delegations of the national government and the urban AGs reaffirmed their willingness to continue the peace talks in these territories. Even so, challenges remain, such as the definition of the legal framework for the transition to legality of members of the groups, the implementation of agreements reached, and protocols for the functioning of the *ECSJ*, as well as the structuring of their thematic agendas and the inclusion of civil society.

In Buenaventura, the *ECSJ* between the national government, the Shottas, and the Spartans continued to explore alternatives to enhance dialogue and support for a culture of peace. In March, the Spartans announced their withdrawal from the process, due to disagreement with some of the Shottas' actions. However, in May the group reactivated its participation and both AGs extended the truce until August 5, 2024. For its part, the national government changed its delegation to this forum in June through Resolution 231 of 2024.

The *ECSJ* created a community work sub-committee that visited neighborhoods with invisible borders⁶² imposed by the AGs and began talks with the inhabitants of these neighborhoods as part of an intervention and reconciliation strategy. The government delegation stated that it will review options for addressing issues such as support for the local economy, reconstruction, or improvement of housing, the return of victims of forced displacement, health care, and childcare services.

60. Peace talks between the National Government of the Republic of Colombia and the Central General Staff of FARC-EP (2023). (Mesa de Diálogos de Paz entre el Gobierno Nacional de la República de Colombia y el Estado Mayor Central de las FARC-EP (2023)). “Acuerdo II Acuerdo sobre el componente internacional y de acompañamiento a la Mesa de Diálogos de Paz”. (Agreement II: Agreement on the international component and monitoring of the Peace Talks Roundtable). Available at: <https://lc.cx/tXQdmW>

61. These actions were not necessarily shaped by the roles that each of the monitors of the peace talks process play in the *MVMV*, but rather by the political commitment to promote confidence-building actions between the parties and to contribute with good offices in times of controversy, focusing above all on the protection of the civilian population.

62. A strategy mostly used by AGs in urban areas to divide territories and restrict movements by their inhabitants. This led to reprisals against people who contravened those restrictions, in the form of homicides, extortions, and other harassment.

One of the main objectives of the *ECSJ* is to reach a "Great Regional Agreement for Buenaventura"⁶³ that allows for territorial transformations, a reduction of violence, and implementation of the path to peace. This requires the participation and consensus of institutions, civil society, and a variety of sectors.

In Quibdó, Los Mexicanos, Locos Yam, and the RPS Armed Forces suspended their participation in the *ECSJ* in February, stating that they needed to move ahead with the commitments reached and establish a joint agenda, and stressing the importance of having the support of the MAPP/OAS, the United Nations, and the Catholic Church.

Despite this, the *ECSJ* resumed operations in April and the AG delegation reaffirmed its commitment to contain the violence through actions such as refraining from extorting money from teachers and allowing institutions to enter neighborhoods in which the AGs exert influence. In addition, it reiterated the need for legal benefits to encourage the surrender of weapons and the transition to legality. For its part, the national government delegation pledged to expedite compliance with previous agreements and to continue efforts to improve living conditions in Quibdó and prevent the creation of new AGs. In June, Resolution 232 of 2024 appointed the new national government delegation to the *ECSJ*.

Among the actions foreseen in the *ECSJ* is the creation of two commissions, one for inter-agency follow-up and the other to lend support to a number of sectors of civil society. The parties plan to carry out cultural, recreational, and sports activities focusing on young people to contribute to the reconstruction of the social fabric, in coordination with national government programs.⁶⁴

In Medellín and the Aburrá Valley, there were delays in *ECSJ* implementation of protocols, agreements, and the thematic agenda. In addition, the AG delegation reiterated the request to define a legal framework for the transition to legality of its members.⁶⁵

The national government delegation, civil society, and the Catholic Church joined forces to support peace-building in urban contexts and publicize the progress made. In February, the social care office of the archdiocese of Medellín and more than 300 people linked to social organizations, collectives, networks, and citizen work partnerships signed a manifesto in support of this process. In June, the national government made an assessment of the first year of the installation of the *ECSJ* in connection with talks convened by social platforms such as the Autonomous Civil Society Committee for the Promotion of Urban Peace.

63. Office of the Peace Commission Advisor (2024). "Progress, Achievements and Results of the *OCCP*: Semiannual Report 37 Mission to Support the Peace Processes in Colombia of the Organization of American States (OAS) July 31, 2024" pp. 6-7

64. Ibid. pp. 4-6

65. Colombia has tools in place for this purpose, including, among others, the application of restorative justice, the prosecutorial discretion principle (*principio de oportunidad*), and mediation in criminal cases (*mediación penal*). In this context, the challenge lies in defining the legal framework to be applied in this type of peace initiatives.

Also at the University of Medellin, the Senate of the Republic held a public hearing on the challenges of peacebuilding in urban contexts and progress made so far. Civil society listed its requirements and victims reiterated that these initiatives must contribute to reparation, truth, and reconciliation. With the support of the National Penitentiary and Prison Institute, two prisoners who serve as spokespersons for the AGs attended the event and stressed the importance of having a legal framework with a restorative approach that enables dialogue with the victims and guarantees their rights. They also requested the creation of a national roundtable and a commission in the Senate to follow up on the "urban and non-rebel peace" processes.

4.4. Prison monitoring

The National Penitentiary and Prison Institute (*INPEC*) enhanced its implementation of its human rights policy in National Prison Establishments (*ERON*), through monitoring, promotion, and prevention activities with a differential approach, involving human rights consuls,⁶⁶ as well as human rights committees of persons deprived of liberty (*PPL*). It also carried out 14 visits to the *ERON* as part of efforts to overcome the "unconstitutional state of affairs" (*Estado de Cosas Inconstitucional*).⁶⁷

In the area of education, *INPEC* implemented a number of academic programs to enhance the capabilities of persons deprived of liberty and their contribution to peacebuilding. In particular, it developed the programs "Education for Peace", in which 187 *PPL* participated, and "Peace Codes" with 30 women deprived of their liberty.⁶⁸

In order to contribute to the educational component, the MAPP/OAS, the National Conciliation Commission, the Embassy of Sweden, and *INPEC* conducted three diploma courses on "Critical Tools for Reconciliation and Peace" at the Bogotá Women's Prison and the Palmira and Valledupar prisons. About 120 *PPL* participated in these programs, most of whom were members of the AG wishing to contribute to peace-building.

The courses were based on an intersectional, participatory, restorative methodological approach, with a focus on meaningful learning for the construction, and reconstruction of interpersonal and group relationships in order to prevent violent responses to conflict situations inside and outside the *ERON*.

These training courses helped humanize the penitentiary and prison system, through exchanges of knowledge (*diálogos de saberes*) in reflection circles and meetings of *PPL*, which made it possible to manage conflicts and develop reconciliation and peace projects. The participants were grateful for this academic opportunity, in which they learned to listen, understand, and interact with others in a dialogue that respectfully addresses differences.

Despite the above, it remained difficult to guarantee the human rights of the *PPL* in matters relating to health, food, and education. For example, delays continued in the assignment of appointments with specialists, medical treatments, and the delivery of medicines, as well as limitations

66. Role performed by *INPEC* officials from the *ERON* and Regional Directorates, appointed to oversee guarantees of the human rights of persons deprived of liberty. They are also in charge of organizing meetings with the human rights and differential approach committees, among other activities. Source: National Penitentiary and Prison Institute (2024). "Request for Institutional Achievements XXXVII MAPP/OAS Semiannual Report and Follow-up on Recommendations" pp. 9-10.

67. National Penitentiary and Prison Institute (2024). "Request for Institutional Achievements XXXVII MAPP/OAS Semiannual Report and Follow-up on Recommendations" pp. 6-9.

68. Ibid. pp. 3-5.

in personnel, appropriate vehicles to accompany medical consultations, and ambulances to attend emergency cases.⁶⁹

In addition, the *PPL* reported dissatisfaction with the quantities, quality, and schedules of the food provided in some prisons. On the other hand, the *ERON* continued to lack adequate infrastructure to carry out educational activities and academic coverage was insufficient for the entire prison population.

Within the framework of the Total Peace policy, the national government and the AGs reached agreements and commitments to improve the prison conditions of the *PPL* belonging to the groups linked to the *MDP* and the *ECSJ*. In this regard, the General Directorate of *INPEC* initiated efforts to provide humanitarian health aid, food support, and improvements in food supply.

The Joint Legal Commission of the *MDP* between the national government and the *EMC*, with the support of the *MAPP/OAS*, paid visits to the Women's Prison and the Penitentiary and Prison Complex in Bogotá, the Cúcuta Prison Complex, and the Valledupar Prison. In these, the commission moved ahead with preparation of a census of the *EMC*'s *PPL* and identified urgent healthcare requirements and requests for the strengthening of education. In addition, it communicated these needs to the Ministry of Justice and Law and *INPEC* with the view to eliciting commitments to address them.

Within the framework of humanitarian relief for *PPL* related to the *ELN*, *INPEC* prioritized health care for the most critical cases and carried out transfers to prisons in Arauca, Bello, Bogotá, Cúcuta, Palmira, and Valledupar to regroup them and bring them closer to their families and to the places where their judicial proceedings are underway. However, the relocations progressed slowly, due to the fact that *INPEC* did not have sufficient economic resources for transportation, nor the capacity to receive new *PPL* in some of these prisons.

In the *ECSJ* of Buenaventura, Quibdó, Medellín, and the Aburrá Valley, the delegations made progress in transferring the *PPL* that are part of the urban AGs to prisons located in these territories. They also identified actions to improve prison conditions in *ERON* and transitory detention centers.

4.5. Other initiatives, talks, and dialogues within the framework of the Total Peace policy

Through Resolution 064 of 2024, the national government authorized the installation of the *MDP* with the Second Marquetalia-Bolivarian Army. From June 24 to 29, the parties, the guarantor countries, and monitors⁷⁰ formally initiated the process, developed the I Cycle of dialogues, signed the "Agreement on early measures for the comprehensive and gradual de-escalation of the conflict", and settled matters regarding the functioning of the roundtable and the protocol for dealing with disputes.

In the agreement, the *SM-EB* committed to establishing a unilateral ceasefire,⁷¹ which will begin once the national government issues the decree of de-escalation of offensive operations against this AG. This means that the *SM-EB* undertakes not to remain armed or uniformed in municipal capitals,

69. In May, despite *INPEC*'s efforts to deal with an intoxication in the Palmira prison, several *PPL* died, some of whom belonged to the *ELN*.

70. The guarantor countries are: the Kingdom of Norway, the Republic of Cuba, and the Bolivarian Republic of Venezuela. The monitors are: the Colombian Episcopal Conference and the United Nations Verification Mission.

71. President of the Republic of Colombia (2024). "At the close of the first negotiation cycle with the government, the 'Second Marquetalia' announced a unilateral ceasefire." Available at: <https://lc.cx/EyoDd>

urban centers, waterways, or primary and secondary land routes. In addition, it will release kidnapped persons and respect the civilian population.

The parties also agreed on the creation of a technical sub-committee in charge of the georeferencing of the areas where *SM-EB* has a presence and the development of opportunities for participating in the identification of social and economic projects with a rapid impact in Tumaco.

In addition, the President of the Republic publicly announced the possibility of initiating talks with the Autodefensas Gaitanistas de Colombia. In a series of communications, this AG expressed its willingness to conduct conversations and define a legal framework for the transition of its members to legality, with a view to forging peace in the territories. Following this, the national government issued Resolution 257 of 2024, which authorized the commencement of Socio-legal Talks (*Espacio de Conversación Sociojurídica*) with the *AGC*.⁷²

In the Sierra Nevada de Santa Marta, the civilian authorities and the peasant, indigenous, and Afro-descendant communities insisted on the call to the national government, the Conquistadores de la Sierra Nevada Self-Defense Forces and the Gaitanista Self-Defense Forces of Colombia to engage in peace initiatives and reduce the harm being done to the civilian population.⁷³

In June, various social sectors in this region held a civic strike and a peace march, which led to the opening of opportunities for dialogue with the institutions involved led by the Ministry of the Interior. Subsequently, the Mayor's Office of Santa Marta installed the Territorial Council for Peace, Reconciliation, and Coexistence, where civil society reiterated its request to expedite the peace-building process. Through Resolution 300 of 2024, the national government authorized the start of Socio-legal Talks with the *ACSN*.⁷⁴

The national government is faced with the challenge of coordinating with the other branches of government to define a legal framework that guarantees the rights of victims and provides legal security for members of the AGs involved in the peace initiatives, talks, and dialogues, while considering options for overcoming legal impediments of those who took part in previous peace agreements.

4.6. Participation and Social Dialogue

Civil society participation continued to be considered a matter of special importance in the Total Peace scenarios.

In Antioquia, Caquetá, Guaviare, Meta, and Norte de Santander, the *MDP* between the national government and the *EMC* developed opportunities for social dialogue with, *inter alia*, civil and ethnic authorities, campesino, women's, and environmental organizations. These scenarios resulted in the installation of inter-agency commissions for the participatory construction of territorial transformation plans for the Sabanas del Yarí in Caquetá, southern Meta, and Catatumbo.

72. President of the Republic of Colombia (2024). "Resolution No. 257 of 2024" Available at: https://lc.cx/tda_P-

73. In February, as a result of clashes between these two groups, 80 families of the Wiwa indigenous people were forcibly displaced from the villages of El Limón, Naranjal, and La Laguna in the municipality of Riohacha in La Guajira.

74. President of the Republic of Colombia (2024). "Resolution No. 300 of 2024" Available at: <https://lc.cx/hI2BIz>

The delegations of the national government and the *EMC* face the challenge of completing the process of defining and signing the "Special Agreement for Participation and Decisions" and the "Protocol for the Participation and Social Oversight of the Population, its Communities, and Organizations." These agreements should allow social society organizations to contribute to this process with guarantees for their security and respect for their autonomy.

At the same time, pursuant to Agreement N°. 9 of the *MDP* between the national government and the *ELN*, the National Participation Committee (*CNP*) provided the delegations with a participation model and plan, as well as a series of recommendations. This occurred as a result of the meetings held with 30 segments of the population⁷⁵ represented by 3,217 social organizations, including 35 community processes. The parties are faced with the task of transforming the recommendations and work of the *CNP* into an inclusive, effective, diverse, and safe mechanism of participation surrounding these peace talks.

In the *ECSJ* of Buenaventura, Quibdó, Medellín, and the Aburrá Valley, the national government proposed differentiated paths and roles for citizen participation based on the urban dynamics of each area.

In Buenaventura, after the restructuring of the *ECSJ*, the delegations of the national government and the AGs will move ahead with the construction of a strategic work plan, in which state institutions, ethnic, communal and community organizations, and the private sector will work together to achieve territorial transformations that allow for the reduction of violence.⁷⁶

In Quibdó, the national government envisaged forming a technical advisory commission made up of different sectors of society to strengthen citizen participation and promote the “ownership” of urban peace as a collective endeavor.⁷⁷

In Medellín and the Aburrá Valley, civil society held popular territorial assemblies and made public declarations as a strategy to draw attention to their support for urban peace-building initiatives and requested that mechanisms be established for effective participation in this process.

The *ECSJ* face the challenge of consolidating and implementing their work plans, especially the participation components needed to ensure the effective involvement of civil society actors in the respective processes.

The participation of civil society in the scenarios of the Total Peace policy must strengthen educational aspects regarding the work agenda, the agreements reached, and methodology; tailor communication strategies to developments in the territories dynamics and to the particular ways in which communities have access to information; as well as convene activities in a timely manner. In addition, the inclusion of security guarantees and respect for autonomy in the opportunities provided for participation are fundamental aspects that will help to generate trust and enhance legitimacy.

5. IMPLEMENTATION OF THE FINAL PEACE AGREEMENT AND OTHER POLICIES

75. Peace Talks Roundtable between the National Government and the *ELN* (2023). Agreement N° 9. “*El proceso de participación de la sociedad en la construcción de la paz*” (Society's participation in the peace-building process). Available at: <https://lc.cx/rthguT>

76. Office of the Peace Commission Advisor (2024). “Progress, Achievements and Results of the *OCCP*: Semiannual Report 37 Mission to Support the Peace Processes in Colombia Organization of American States (OAS) July 31, 2024” p. 7.

77. Ibid. p. 6.

5.1. Comprehensive Rural Reform (*RRJ*)

The Colombian State continued its efforts to address the structural causes of the armed conflict and the territorialization of peace policies by expanding the services and institutional presence of entities such as the National Land Agency (*ANT*), the Land Restitution Unit (*URT*)⁷⁸, and the Territorial Renewal Agency (*ART*). In addition, with the recent adoption of the Statutory Law on Agrarian and Rural Jurisdiction,⁷⁹ progress was made in the protection of the most vulnerable rural communities and in guaranteeing legal security for the resolution of land tenure conflicts.

The *ANT* helped establish a single land purchase procedure for the Agrarian Reform; titled land⁸⁰ in favor of mayors and governors in Arauquita, Fortul, and Tame in Arauca and Uribe in Meta; formalized land titles in the Campesino Reserve Zone of the Pato River Basin and Balsillas Valley in Caquetá; and delivered land to indigenous, campesino, and Afro-descendant communities in Cauca.

In addition, the Ministry of Agriculture and Rural Development and the *ANT* completed the process of clarifying the figures regarding progress made with respect to the formalization and land access commitments established in the AFP. During the seven years of implementation, the Colombian State has formalized the status of 42% of seven million hectares committed and has delivered 4% of the three million hectares agreed upon.⁸¹

In addition, the *URT* expanded its spheres of activity by introducing a model for monitoring the restitution process in collaboration with international organizations,⁸² including MAPP/OAS. The entity made progress with the review of administrative acts with negative registration decisions (denials) in the Register of Forcibly Abandoned and Dispossessed Lands and, during the current government period, increased the number of favorable decisions from 35% to 70%.⁸³

The *ART* began the participatory review of the initiatives of the Development Programs with a Territorial Approach (*PDET*). Between April and May, the Mission attended 28 of these events in 10 of the 16 *PDET* subregions, during which the Agency promoted inclusive and diverse dialogues among civil and ethnic authorities, campesino communities, and peace signatories. For the participants, this exercise renewed their trust in the process, allowed them to review the prioritization of initiatives, and

78. In the first half of the year, the *URT* opened an office in Tumaco and established a new Territorial Directorate in Chocó.

79. The Statutory Law on Agrarian and Rural Jurisdiction expedited implementation of the Agrarian and Rural Jurisdiction, establishing the guidelines for the Superior Council of the Judiciary to move ahead with the training of future agrarian judges and magistrates, the distribution of the agrarian judicial map, and other provisions needed to enable the jurisdiction to begin operating.

80. These are properties where public services are provided and facilities for the exercise of fundamental rights such as health and education centers, police stations, parks, etc., are located.

81. Figures presented by the Ministry of Agriculture and Rural Development at the overall assessment of land management in connection with implementation of the *AFP*, carried out August 2, 2024. The 42% figure for formalization corresponds to 2,951,466 hectares and the 4% figure for delivery is equivalent to 122,429 hectares.

82. The amendment of Decree 1071 of 2015 through Decree 1623 of 2023 establishes that the micro-targeting of geographic areas will be the responsibility of the *URT* in coordination with law enforcement and social actors, including international organizations.

83. Land Restitution Unit (2024). "*Principales avances, logros y resultados de la Unidad de Restitución de Tierras para la restitución a las víctimas en construcción de paz*" (Main advances, achievements, and results of the Land Restitution Unit for restitution to victims during the peace-building process).

strengthened their involvement in the implementation of the *AFP*. It is crucial that the national government responds to this trust with tangible progress in the territories, as well as with speed, equity, and transparency in the allocation of resources.⁸⁴

Social leaders and campesino and ethnic communities welcomed these increases and the presence of the entities in charge of Integral Rural Reform, which enhanced their relationship with these entities and the search for consensual solutions to social tensions over land tenure. For example, as happened in Putumayo with the installation of the Inter-agency and Intercultural Humanitarian Roundtable of the Villa Catalina de Puerto Rosario Protected Area.

Within the framework of the National Agrarian Reform and Rural Development System, the Campesino Intersectoral Commission and the consultative commissions for indigenous peoples and Afro-Colombian communities held meetings, which reaffirmed the importance of the participatory implementation of the *RRI* for the transformation of territories, the strengthening of governance, and overcoming allegations of abandonment by the state.

The Mission welcomes the fact that, as part of the activities to implement the *PDET*, the *ART* held the First National Meeting on Gender, Rural Women and Diversities as Peace Builders and the 16 sub-regional meetings of the Technical Secretariats of the Municipal Community Roundtables. However, the challenge is to continue to promote the inclusion of all rural sectors of society, especially women and communities with diverse sexual orientation, in all components of the *RRI*.

Despite this, the AGs continued to purchase land as part of their strategy of land accumulation and dispossession around the La Paya National Natural Park (*PNN*) and in the departments of Antioquia, Cauca, Córdoba, Nariño, and Norte de Santander. Particularly in the Catatumbo region, armed groups continued to intervene in community conflicts over land use and tenure. In this regard, in Norte de Santander, the Peace Agreement Implementation Unit organized four local territorial coordination sessions with *AFP* implementing entities, a sign that efforts were being made to counteract dispossession and promote sustainable peace in territories affected by the armed conflict.

5.2. Institutional strategies for the reduction of illicit crops and developments related to drug trafficking.

The actions carried out by the Colombian government to reduce illicit crops continued to combine different strategies. The national government set a goal of 10,000 hectares manually eradicated by 2024, of which, as of June, 2,183 hectares had been intervened.⁸⁵ This figure was 65% lower than the 6,311 hectares eradicated in the same period in 2023. Cocaine hydrochloride seizures

84. In the first half of the year, the national government modified the allocation of funds through the Collegiate Body for Administration and Decision-Making (*OCAD Paz*), promoting the equitable distribution of resources with an investment of COP\$7.3 billion for the *PDET*. This fostered inter-agency coordination to improve transparency and efficiency in the implementation of projects in prioritized territories, resulting in the approval of 31 projects for more than COP\$293 billion.

85. In Antioquia (256 hectares), Bolívar (451 hectares), Boyacá (72 hectares), Santander (25 hectares), and Putumayo (1,380 hectares). Source: Ministry of National Defense (2024). “Seguimiento a indicadores de seguridad y resultados operacionales (Follow-up on safety indicators and outcomes of operations). June 2024” p. 42.

increased by 35% in the first half of 2024, compared to the same half of the previous year, from 320 tons to 431 tons.⁸⁶

The Directorate for the Substitution of Illicit Crops reactivated the Territorial Advisory Councils⁸⁷ of the Comprehensive National Program for the Substitution of Illicit Crops (*PNIS*), which made it possible to streamline coordination between the national and territorial levels. It also developed opportunities for dialogue with the communities⁸⁸ in which some agreements on payments and disbursements of program resources were renegotiated.

Despite these efforts, the beneficiary population continued to express its dissatisfaction due to delays in payments and changes in the agreed terms and conditions. These disagreements led to mobilizations and protests in Antioquia and Norte de Santander. One of the challenges resulting from the closure of the *PNIS* and the design and implementation of the Illegalized Economies Substitution Program will be to regain confidence based on swift and effective execution with a territorial approach in the most affected regions.

The marketing of cocaine paste (*PBC*) continued to stagnate. Additionally, purchase and sale prices, which range between COP\$1,400,000 and COP\$2,200,000 per kilogram and vary geographically, continued to be low compared to previous years,⁸⁹ which represented another disincentive for the population linked to this economy.

Despite the above, drug trafficking continued to be more profitable than any other agricultural activity in the areas where illicit crops are grown. As a result, there are still coca leaf plantations with bushes of various sizes and production laboratories in operation, where the growers and producers continue to work and accumulate cocaine paste while awaiting the reactivation of marketing outlets.

The AGs continued to regulate this illicit economy, establishing limits on the number of hectares planted, preventing buyers from entering the territory, and ensuring that the population producing *PBC* moved to other places to market it. Particularly in Catatumbo, the groups intervened in this market through the administration of warehouses where the *PBC* is exchanged for food and basic necessities, at prices imposed by them.

In southern Córdoba and southern Bolívar, armed groups threatened community leaders and officials responsible for implementing the *PNIS*. This led to the weakening of community organizations and the consequent risk that they would be co-opted, replaced, or supplanted by others.

5.3. Integral reparation to victims

86. According to the Integrated Illicit Crop Monitoring System, by 2022 Colombia was capable of producing 1,738 metric tons of cocaine. Source: Integrated Illicit Crop Monitoring System (2023). "Monitoring of territories with coca cultivation in 2022."

87. In Antioquia, Arauca, Bolívar, Caquetá, Córdoba, Cauca, Guaviare, Meta, Nariño, Norte de Santander, Putumayo, Valle del Cauca, and Vichada. The Territorial Advisory Councils were created through Decree 362 of 2018.

88. In Antioquia, Arauca, Bolívar, Caquetá, Córdoba, Cauca, Guainía, Guaviare, Meta, Nariño, Norte de Santander, Putumayo, Valle del Cauca, and Vichada.

89. Prior to 2022, the year in which this trend began to consolidate, *PBC* marketing prices averaged COP\$3,000,000 per kilogram.

The Unit for the Care and Integral Reparation of Victims (*UARIV*) increased its annual budget from COP\$2.7 billion in 2023 to COP\$4.7 billion in 2024 and projected that it would pay 270,000 compensations in the course of the year: the entity's highest figures for a single year.⁹⁰

This budget increase made it possible to expedite the fulfillment of compensation goals in individual reparations. For example, in the first semester of 2024, the *UARIV* delivered 143,077 transfers to 126,015 victims, which amounted to COP\$1.275 billion, a figure that exceeds by more than 1.6 times the average annual amount delivered by previous governments.⁹¹

The *UARIV* increased the inclusion of Groups Eligible for Collective Reparation (*SRC*) in the Single Registry of Victims (*RUV*) by applying new valuation criteria. Between January and June 2024, it added 29 *SRC* to the *RUV*, including 13 indigenous communities, 10 Afro-Colombian communities, 4 campesino communities, and 2 social organizations. In this same period, the *UARIV* made progress with the implementation of 93 actions of the Comprehensive Collective Reparation Plans (*PIRC*), benefiting 52 *SRC*.⁹² In Vistahermosa and La Macarena in Meta and Buenaventura⁹³ in Valle del Cauca, some communities that are part of *SRC* acknowledged the progress made with the implementation of their *PIRC*.

The delay in the implementation of the *PIRC* is due to multiple causes, such as difficulties with coordinating the execution of actions among the entities that make up the National System for the Care and Integral Reparation of Victims; delays in the assignment of professionals and frequent rotation of teams; as well as, in some cases, the scant feasibility of certain measures given the precarious infrastructure and the security risks in the territories. All of the above pose a challenge for the comprehensive reparation of *SRC*.

For example, in Almaguer in Cauca, El Bagre and Ituango in Antioquia, and Fundación in Magdalena, the absence of roads to ensure profitable marketing of products makes it difficult to implement reparation measures related to rural development. On the other hand, in Segovia in Antioquia and Tibú in Norte de Santander, there are security risks on some of the land and personal property delivered by the entities, because the AGs prohibit the use and intervention of land and machinery.

As regards security and non-repetition guarantees, there are still risks stemming from the resurgence of the armed conflict for communities, social leaders, and organizations, victims' roundtables, and *UARIV* officials. For example, in Tibú, an AG restricted the mobility of *UARIV* personnel of the Territorial Directorate of Norte de Santander. In these contexts, due to the impact of the armed conflict, priority must be accorded to moving ahead with the implementation of prevention and protection measures, as well as to maintaining and expanding the institutional presence of the *UARIV*, especially in territories in which more than one armed group wants to exert control.⁹⁴

90. Document entitled "*Avance e hitos de la Unidad para las Víctimas a casi dos años del inicio del gobierno nacional*" (Progress and milestones of the Victims Unit almost two years after the beginning of the national government) presented by the head of the entity at a meeting with the international community in April 2024.

91. Information provided by *UARIV* to MAPP/OAS in October 2024.

92. Ibid.

93. In the Community Council of the Yurumanguí River Basin, the *UARIV* will initiate the second phase of implementation of measures and will verify the actions undertaken in 2023.

94. The communities and local authorities of Puerto Rondón in Arauca drew the *UARIV*'s attention to the closure of the municipality's Victim Care Unit (*PAI*) and requested the revocation of this decision.

The Ministry of the Interior moved ahead with the installation of the National Community Security Roundtable, as well as the departmental roundtables in Arauca, Bolívar, and Norte de Santander.⁹⁵ It did so as part of the measures of prevention, protection, and guarantees of non-repetition of the restrictions imposed on community leaders and the *SRC* of the Community Action Organizations (*OAC*).

However, there were ongoing obstacles to the participation of a number of stakeholders in the departmental roundtables, due to lack of knowledge of the regulations governing them, poor dissemination of the calls for participation, and difficulties in planning and complying with the timetable. Some *OAC* reported non-compliance by institutions with the commitments undertaken in these forums, which undermined trust in the process.

On April 9, the Day of Memory and Solidarity with the Victims of the Armed Conflict, the *UARIV* promoted the campaign "For the Victims. 9 million stories not to be repeated", with the support of MAPP/OAS in 15 commemorative processes in nine departments. The focus on guarantees of non-repetition in this campaign afforded an opportunity for different actors to draw attention to the harm still being inflicted by the AGs on the civilian population and the need to focus above all on victims' rights in efforts to achieve Total Peace.

5.4. Search for Missing Persons

In connection with the commemoration of the 76th anniversary of the signing of the Pact of Bogota, which gave birth to the Organization of American States, and the 20th anniversary of the MAPP/OAS in Colombia,⁹⁶ the OAS Secretary General, Luis Almagro, assured the Director General of the Unit for the Search for Missing Persons (*UBPD*) that the Organization was committed to supporting the Unit's work by fostering cooperation between Colombia and other countries in the Americas.

The President of the Republic, through Decree 532 of 2024, regulated the National System for the Search for Missing Persons in the Context and as a Result of the Armed Conflict. In June 2024, the Intersectoral Commission of the National Search System met for the first time, adopted its regulations, appointed the System's technical committees, and approved the steps to be taken to achieve a comprehensive public policy in this area. Under the leadership of the *UBPD*, in coordination with the Ministry of Justice and Law and with the support of MAPP/OAS,⁹⁷ the System is now tasked with coordinating the branches of government for the formulation and implementation of the National Plan and Public Policy for the Search for Missing Persons.

Since it began operating, the *UBPD* has achieved the recovery of 1,626 human remains and the dignified or culturally appropriate recovery of 300 bodies. It also managed to reunite 23 people found alive with their families.⁹⁸ This represents progress given the challenges of conducting the humanitarian and extrajudicial search for the 111,640 reported victims, responding to 34,910 search requests, and searching 9,233 sites included in the National Register of Graves, Illegal Cemeteries, and Burial Grounds.

95. Forums regulated by Resolution 031 of 2024 of the Ministry of the Interior. Article 3 mentions the OAS as guarantor of the process.

96. Meeting held on April 15, 2024 at the Colegio Gimnasio Moderno in the city of Bogotá.

97. Article 2.2.5.9.2.2. of Decree 532 of 2024 on the Intersectoral Commission of the National Search System designates MAPP/OAS as a permanent guest. Available at: <https://lc.cx/Fj5DJR>

98. Figures provided to MAPP/OEA by the Unit for the Search for Missing Persons in October 2024.

With the expansion of coverage and territorial redistribution, the *UBPD* expects to implement 92 Regional Search Plans (*PRB*), 33 of which are in the implementation phase, 13 are in the process of being adjusted or updated, and the remainder are still being formulated. This strengthening of search planning is accompanied by the reinforcement of forensic teams with a wider territorial scope and the systematic incorporation of the people and communities involved in each phase of the search process. In the regions of Catatumbo, Sarare, and Pacífico Nariñense, the departments of Caquetá and Meta, and the municipality of San José del Guaviare, the communities and local authorities supported the work of the *PRB* and even requested the inclusion of search actions in municipal and departmental development plans.⁹⁹

The dynamics of the armed conflict continued to have a negative impact on the work of the *UBPD*. In Putumayo, the confinement of communities due to the territorial dispute between AG's hampered implementation of the *PRB*, including efforts to develop humanitarian corridors.

In the departments of Arauca, Caquetá, Cauca, and Nariño and in the Bajo Cauca region, forced disappearance persisted as a result of the actions of the AGs, affecting mostly the civilian population; this had a differential impact on children and adolescents who were victims of forced recruitment. In addition, the confrontations between the groups led to cases of irregular disposal of bodies in mass graves.

In areas affected by the armed conflict, the challenge is to strengthen confidence in judicial and humanitarian search entities for the reporting of cases and the activation of procedures.

In this context, the National Search System should address cases of enforced disappearance after 2016,¹⁰⁰ take steps to prevent it, and reinforce education on the different roles of the entities responsible for different types of searches: judicial, extrajudicial, and humanitarian.¹⁰¹

5.5. Transitional Justice for peace building

The transitional justice mechanisms in force, Law 975 of 2005¹⁰² or Justice and Peace Law (JyP) and the Special Jurisdiction for Peace (JEP), constantly make invaluable contributions to the clarification and establishment of criminal responsibility for crimes committed during the armed conflict and the guaranteeing of victims' rights. The GS/OAS acknowledges the victims, the underlying

99. In Tumaco, the communities asked the municipal administration to include the following actions to support the search for missing persons: (i) improvement plans for cemeteries and registration of unidentified bodies; (ii) conducting joint certifications (*caracterizaciones*) by the Mayor's Office, the Governor's Office of Nariño, and the *UBPD*; (iii) conducting comprehensive victim workshops with the *UBPD* for the dissemination of institutional procedures; (iv) support for commemorative actions undertaken by roundtables and organizations involved in searches; and (v) the allocation of funding for the dignified delivery of human remains to the families of persons reported missing.

100. The *UBPD* is authorized to carry out search actions in cases of persons reported missing that occurred prior to December 1, 2016 in connection with the armed conflict. Available at: https://lc.cx/_ytRVu

101. The *UBPD* is responsible for humanitarian and extrajudicial searches. The term "humanitarian" refers to the centrality of the victims in the process, both as regards the right of the person reported missing to be searched for, and in the right of the searchers to search. "Extrajudicial" refers to the fact that information regarding the process is kept confidential and judicial responsibilities are not assigned. The term "judicial" refers to components of the judiciary, such as the Attorney General's Office.

102. This was complemented by Law 1424 of 2010, which established transitional justice provisions that guarantee truth, justice, and reparations to victims of demobilized members of AGs, among other matters. Available at: <https://lc.cx/NqQOIf>. For its part, Law 1448 of 2011 is a transitional justice law, which focuses on recognition of the victims of the armed conflict. Available at: <https://lc.cx/q7JVjg>.

tenets, the participants, and the institutions, especially the judicial operators, whose work and continuous contributions enhance the possibilities of building peace with justice and guarantees of non-repetition.

After 19 years of work, the Justice and Peace Chambers (*Salas de Justicia y Paz*) have handed down 86 judgments, covering 13,532¹⁰³ of the 110,200 cases with charges brought by the Attorney General's Office (*FGN*). In this way, the Justice and Peace law has contributed to the understanding of the causes and effects of the armed conflict. In addition, the *FGN* has prioritized the strengthening of the Transitional Justice Directorate to expedite the tracing of assets for reparation purposes through the use of artificial intelligence, the finding and identification of victims of forced disappearance, and the screening of more than 700 attested copies (*compulsas de copias*).¹⁰⁴

The Special Jurisdiction for Peace has analyzed 2,293,792 cases¹⁰⁵ and has conducted 179 truth-building and interjurisdictional and intercultural coordination proceedings. In the 11 open cases, it has certified 11,576 individual victims and 370 groups (*sujetos colectivos*). Likewise, it has issued 12 findings regarding facts and conduct in which 156 persons appearing in court (*comparecientes*) were indicted as those bearing more responsibility. This led to four resolutions containing conclusions regarding their subsequent sentencing and punishment.¹⁰⁶

In this sense, the *JEP* has helped improve models for the participation of victims and communities in transitional justice mechanisms, as well as to the design of restorative justice practices. Together with the national government, it formally installed the Government-*JEP* Coordination Unit (*Instancia de Articulación*)¹⁰⁷ for the implementation of its own sanctions and other measures to contribute to the reparation of victims. As a result, the Unit identified 53 plans, programs, or projects of national government entities that could help implement the *JEP*'s restorative sanctions. These learning processes, supplemented in the future by other judicial and non-judicial measures, may contribute to the satisfaction of victims' rights in a more efficient manner.¹⁰⁸

At the same time, coordination between transitional justice mechanisms continues to be important for the accumulation of cases based on the same macro-criminal pattern and for coordinating other institutional responses. For example, in cases of enforced disappearance, the information obtained in the *JyP* and *JEP* processes must be made available to the entities charged with searching for the victims.¹⁰⁹ Although the *FGN* and the *UBPD* have tried to improve coordination, the challenge they

103. Office of the Attorney General (2024). "Respuesta solicitud de información junio 17 de 2024 radicado ORFEO 20245800026085" (Response to the request for information of June 17, 2024 filed as ORFEO 20245800026085).

104. In the framework of the "Justice and Peace: 19 years of learning and contribution to truth and reconciliation" conference, the Attorney General of the Nation announced these actions undertaken in connection with the strengthening of the Transitional Justice Directorate. Available at: <https://x.com/fiscaliacol/status/1815749691117588889?s=61>

105. Special Jurisdiction for Peace (2023). "2023 Management report." Available at: <https://lc.cx/rthguT>

106. Special Jurisdiction for Peace (2024). "Main statistics, Date of update: July 26, 2024."

107. This Unit forms part of the coordination process provided for in Article 205 of the National Development Plan. Significant decisions and results of this Unit include: i) approval of operating procedures; ii) division of work based on thematic roundtables; and, iii) agreement on the provision of priority services and the budget of the national government entities for restorative actions in 2025.

108. Information provided by the *JEP* to MAPP/OAS in October 2024.

109. In Colombia there are two mechanisms for this purpose. One is the *FGN*'s Internal Working Group for the Search, Identification, and Delivery of Missing Persons, which obtains its information from judicial processes and which indirect victims know about. The other is the *UBPD*, an extrajudicial entity that

face is strengthening complementarity and reviewing their strengths and lessons learned, so as to enhance cooperation and provide a comprehensive response to victims.

Likewise, reparation (*indemnización*), understood as compensation for material and non-material damage to victims, poses problems associated with the time taken to process claims and the existence of multiple judicial and administrative procedures.¹¹⁰ Thus, the challenge for future transitional justice mechanisms lies in the simplification of procedures, while maintaining the standards achieved in this area and respect for the principle of non-regression.

All of Colombia's accumulated experience in transitional matters, with its achievements and challenges, affords a key resource for energizing existing mechanisms and developing future models that guarantee the investigation and punishment of serious violations of human rights and IHL, as well as the recognition of victims and their right to truth, justice, comprehensive reparation, and guarantees of non-repetition.

In this sense, the initiatives, conversations, and dialogues underway between the national government and the AGs represent an opportunity to adjust and design more effective transitional justice tools and to strengthen complementarity between the models, with a view to being able to replicate and share knowledge between the *JyP* and the *JEP*. This will allow transitional justice to continue to be an indispensable component in peace building in Colombia.

6. ENVIRONMENTAL PEACE

The MAPP/OAS supports Colombia's efforts to prevent deforestation and preserve biodiversity in areas affected by armed conflict. It also encourages the international community and the private sector, within the framework of the Conference of the Parties to the Convention on Biological Diversity (*COP16*) and their responsibility to care for the environment, to lend political and economic support for the territorial transformations required to achieve peace with environmental sustainability.

The national government strengthened the environmental peace agenda¹¹¹ through the incorporation of the "peace with nature" approach as a central axis of *COP16* and the holding of various academic and social forums in preparation for the event. Additionally, in April, the Constitutional Court defined the obligations of the Colombian State regarding prevention and comprehensive care for victims of forced internal displacement associated with climate change.¹¹² This jurisprudence is in

accesses information on forced disappearance confidentially and, among other sources of information, responds to the precautionary measures issued by the *JEP*.

110. Victims accredited before the *JEP* have access to reparation under the Victims and Land Restitution Law (Law 1448 of 2011). For its part, *JyP* provides for judicial redress for damages committed by a member of an AG. In addition, victims of the armed conflict can turn to the inter-American human rights system if they fail to obtain reparation, in accordance with Article 63(1) of the American Convention on Human Rights.

111. The MAPP/OAS understands environmental peace as a set of governmental and social initiatives for the conservation and protection of biodiversity in contexts of armed conflict, the implementation of which has an impact on peace building.

112. Constitutional Court (2024). "Judgment T-123 of 2024." Available at: <https://lc.cx/AH8Xi5>

addition to the recognition of the Amazon as a subject of rights¹¹³ and the environment as a victim of the armed conflict.¹¹⁴

Thus, decisions to resolve the tensions between rural development and environmental protection must involve the collaboration of the three branches of government and be addressed in a participatory manner in the institutional scenarios defined by the Colombian legal system. Therefore, issues such as the definition of subsistence livestock farming, the regulation of community mining, or the draft law on green area titles (*títulos verdes*)¹¹⁵ afford an opportunity to make well-coordinated regulatory adjustments that are essential for overcoming these tensions.

In addition, the challenge of achieving environmental peace involves promoting and increasing the territorial governance of campesino and ethnic communities; strengthening justice and taxation of activities with a severe environmental impact; as well as defining land use and tenure models that allow agroindustry, food production, and the development of a forestry economy.

The incorporation of environmental issues in the *MDP* between the national government and the AGs drew attention to the importance of coordination between the Ministry of Environment and Sustainable Development and the Ministry of Agriculture and Rural Development. The goal here is to identify regulatory adjustments that facilitate territorial planning and management, based on tools such as Participatory Environmental Zoning and the establishment of Campesino Reserves in Areas Reserved for Forests.

The implementation of biodiversity conservation and protection strategies in contexts of armed conflict, such as Payment for Environmental Services and Forestry Development Nuclei, was well received by the communities.

These strategies can be strengthened through the development of infrastructure for economic forestry activities and education on the associative model of forest care. Another challenge is to resolve the confusion regarding the scope of the international REDD+ mechanism¹¹⁶ or carbon credits and Payment for Environmental Services, by facilitating the implementation of this government initiative.

These processes were impacted by the AGs due to the imposition of restrictions on environmental officials and programs, exacerbated by ongoing territorial disputes in Forest Reserve Zones and National Natural Parks (*PNN*). For example, since October 2023, in Caquetá, Guaviare, and Meta an AG prohibited the entry of officials implementing Payments for Environmental Services and Forestry Development Nuclei. This hampered development of the Deforestation Containment Plan and made it more difficult to continue the historical achievements obtained during 2023 in the reduction of this practice.¹¹⁷

The armed conflict continued to affect fauna and flora and the contamination of water sources due to illegal mining, the processing of cocaine paste, and damage to hydrocarbon transportation infrastructure.

113. Supreme Court of Justice (2018). "Judgment 4360 of 2018." Available at: <https://lc.cx/8nTwB8>

114. Special Jurisdiction for Peace (2022). "*El ambiente como víctima silenciosa*" (The environment as a silent victim). Available at: <https://lc.cx/lxFvGK>

115. House (*Cámara*) of Representatives (2023). "Bill 096 of 2023." Available at: <https://lc.cx/F-BGCa>

116. The acronym REDD+ stands for "Reducing emissions from deforestation and forest degradation." Available at: <https://lc.cx/P6ZBly>

117. Ministry for the Environment and Sustainable Development (2024). "Petro Government achieves the largest reduction in deforestation in Colombia's history." Available at: <https://lc.cx/Vj6jmm>

These activities had social and economic impacts on those communities living in areas near rivers¹¹⁸ in Antioquia, Córdoba, Chocó, La Guajira, Nariño, and Valle del Cauca and the Farallones National Parks in Cali, Serranía de La Macarena, Chiribiquete, and La Paya. In these areas, communities had limited access to clean water, uncontaminated food, and medical care for treatment of diseases caused by exposure to mercury or other dangerous chemicals. This caused the displacement of people to less contaminated areas and the consumption of untreated rainwater.

In Antioquia, Guaviare, Meta, Putumayo, Valle del Cauca, and the Telembí region in Nariño, communities and civil authorities highlighted the increase in deforestation related to cattle ranching activities, the reduction in sales of *PBC*, illegal mining, and the illegal marketing of timber.

In Arauca, Antioquia, Caquetá, Cauca, Córdoba, Guaviare, Meta, and the Sierra Nevada de Santa Marta region, the AGs imposed restrictions and sanctions¹¹⁹ on deforestation, wildlife hunting, and fishing, allowing these activities only for family consumption purposes. In addition, the AGs facilitated deforestation by opening roads in areas of special environmental interest such as Tinigua National Park, Serranía de La Macarena, Serranía de Chiribiquete, in the Naya region and the municipality of Milán in Caquetá.

7. WOMEN, PEACE, AND SECURITY AGENDA

The Ministry of Equality and Equity continue to foster the gender measures of the *AFP* Implementation Framework Plan through its leadership in the March and June sessions of the Government's High Level Body on Gender Issues (*Alta Instancia de Género*) and follow-up reports on the implementation of the 54 gender-focused indicators of the Integrated Post-Conflict Information System.¹²⁰

In addition, through the Vice-Ministry of Women,¹²¹ the government moved ahead with institutional coordination of the National Action Plan of Resolution 1325 (*PAN 1325*) through bilateral roundtables with 33 entities in which actions, resources, and responsibilities were established. These institutions also considered the creation of a tripartite follow-up mechanism led by the Ministry of Equality and Equity, the Ministry of Foreign Affairs, and the Ministry of the Interior.

For its part, the Human Rights Directorate of the Ministry of the Interior updated the 2023-2026 Action Plan of the Comprehensive Program of Guarantees for Women Leaders and Human Rights Defenders (*PIGMLD*), containing the proposals of more than 380 women in 12 territorial locations. The Plan includes 75 actions and 145 activities involving 29 entities and its implementation includes a

118. Such as the Mexicano, Telembí, Magüí, Guelmambí, and Ñambí rivers in Nariño; Yurumangui in Valle del Cauca; San Jorge in Córdoba; Jerez in La Guajira; Baudó and San Juan in Chocó; and Nechí in Antioquia.

119. Punishments for non-compliance with these requirements may include, inter alia, fines, kidnapping, forced labor, and displacement.

120. The most recent report was published on the website of the Ministry of Equality and Equity in April 2024. Available at: <https://lc.cx/5ELcZx>

121. It is worth noting that in Ruling C-161 of 2024, the Constitutional Court "declared Law 2281 of 2023, through which the Ministry of Equality and Equity is created and other provisions are enacted, unconstitutional (*inexequible*) with deferred effects." This means that the effects of the decision will be deferred until 2026, at which time this law will cease to produce effects. As an alternative, the Court established that the procedure for the creation of the Ministry may be initiated again in the Congress of the Republic in compliance with the demands and requirements for approval of laws or its functions may be reassigned to other entities. Available at: <https://lc.cx/WehXnT>

territorialization process between the national government, local authorities, women leaders, and human rights defenders.

The Vice-Ministry of Women's Affairs and the Ministry of the Interior have had an impact on gender mainstreaming in municipal and departmental development plans. Particularly in Cauca¹²² and Nariño, the governors' offices included specific actions in the *PIGMLD*.

On the other hand, the Peace Agreement Implementation Unit moved ahead with the drawing up of the National Program of Experiences Illustrating Ways to Foster Implementation of the Gender Measures of the Peace Agreement, especially in the *PDET* municipalities.¹²³ The objective of the Program is to achieve comprehensive implementation of the *AFP*'s gender measures in rural areas, through the strengthening of women's organizations to ensure their sustainability and economic autonomy, political participation, and human security.

Likewise, this entity continued to promote the incorporation of gender, intersectional, and anti-racist approaches in the public policy of dismantling criminal organizations that threaten peace-building, including the so-called successors of paramilitarism and their support networks, thereby drawing attention to gender-based violence from a comprehensive perspective.

Apart from the progress mentioned above and the inter-agency efforts to articulate the *PANI325*, the *PIGMLD* and the Total Peace policy, there is still a lag in the incorporation and implementation of the gender and peace agenda in matters such as the immediate implementation agreements derived from the *MDP* between the national government and the *EMC*. This has limited the institutional response to attacks on the lives and integrity of women leaders and defenders, thereby weakening women's collective, community, and organizational processes.

Even with the implementation of the ceasefires, women continued to face risks to their security as well as setbacks in the implementation of the differential measures for prevention, protection, and guarantees of non-repetition.

In the departments of Arauca, Cauca, Guaviare, Norte de Santander, Putumayo, and the Magdalena Medio region, the AGs perpetuated gender-based violence that included femicides, forced recruitment, use and abuse of girls and adolescents, sexual violence, human trafficking, and forced disappearances. This led to the disintegration of the community and organizational fabric of women, as occurred with the murder of the indigenous leader Carmelina Yule Pavi, former local coordinator of the Women's Fabric (*Tejido Mujer*) of the Indigenous Protected Area of Toribío in Cauca.¹²⁴

8. BORDER SCENARIOS

Colombia continues to be a country of transit, destination, and return migration flows. The arrival of foreigners in Colombian territory is the result of global phenomena¹²⁵ and political, economic, and security situations in the migrant population's countries of origin. In response, the Colombian government has sought to develop its own initiatives in coordination with other governments, such as the reactivation of the National Intersectoral Commission on Migration, the implementation of

122. Through a consolidated participation body called Juntanza.

123. Peace Agreement Implementation Unit (2024). "Request, Institutional Achievements. XXXVII Semiannual Report MAPP/OAS." p. 2.

124. See footnote No. 58 on page 16 of this report.

125. The Mission continues to monitor the transit of transcontinental migratory flows from Africa, Asia, and Europe in Colombia's border areas with Ecuador and Panama, in addition to migrants of other nationalities from a number of South American countries.

measures to regularize the status of the Venezuelan population interested in staying in Colombia, and the development of the Comprehensive Care and Support Plan for the Darien, among others.

As part of the migration flows, Colombian, Peruvian, Ecuadorian, and Bolivian nationals transited through Colombia to continue on to the United States. On the borders with Ecuador and Panama, the AGs increased their intervention in the transportation, lodging, and routes imposed for the irregular passage of migrants, including charging for the use of any of these services.

In Ipiales in Nariño, Venezuelan migrants entered Colombia with the intention of returning to their country to participate in the presidential elections. In addition, local institutions and international cooperation agencies warned that Ecuadorians entered Colombian territory due to forced displacement, fleeing violence in the north of their country.

In Arauca and the regions of Bajo Putumayo and Abades in Nariño, the armed groups restricted the arrival and residence of Venezuelans, accusing them of collaborating with another AG or with the security forces.

Illicit economies continued to grow in Colombia's border areas. In Ipiales and Cumbal in Nariño, the AGs set up sites for the processing of *PBC* or illicit gold mining, eliciting the participation of Colombians and migrants in these activities.

On the Venezuelan border, the groups continued to extort those involved in activities linked to smuggling, drug trafficking, and human trafficking. For example, in Tibú in Norte de Santander, the AGs controlled the arrival of contraband food from Venezuelan territory and prohibited the entry of cassava and bananas to regulate their prices on the Colombian side. In addition, the announcement of the opening of vehicular traffic and the reduction of pedestrian traffic through unauthorized crossings triggered a reduction in AG funding sources. This led to an increase in extortion targeting the resident population of Dibulla on the La Guajira border.

Along the borders with Ecuador, Panama, and Venezuela, violations of the life, liberty, and security of the Colombian and foreign civilian population continued to occur. Women, children and adolescents, and young people were the population groups most vulnerable to being victims of human trafficking and smuggling, enlistment in a terrorist group, forced disappearance, kidnapping, sexual violence, xenophobia, theft, and homicides.

In Tumaco in Nariño, human trafficking networks extracted girls as young as 13 years old and adult women to sexually exploit them in other municipalities of the department or in Ecuador. Men and women, including adolescents, from La Guajira were trafficked for sexual exploitation in Córdoba and Sucre or for labor exploitation in Cundinamarca. In San Miguel in Putumayo, Venezuelan women were reported as victims of forced disappearance after transiting to Ecuador following false promises of work.

In this regard, States continue to face the challenge of strengthening protection and risk prevention systems for safe and orderly migration.

9. RECOMMENDATIONS

9.1. To the Office of the Peace Commission Advisor

9.1.1. Within the framework of peace initiatives, talks, and dialogues:

- a. Continue to foster specific commitments for the protection of the civilian population in accordance with the norms of International Humanitarian Law and respect for human rights.
 - b. Promote the signing of agreements that establish the commitment of the armed groups not to interfere with the entry and development of humanitarian activities and actions related to the implementation of the Final Peace Agreement.
 - c. Tailor the communication, educational, and convening strategies of the Total Peace policy processes to developments in the territories, ensuring their dissemination through the channels of access to information used by the communities and helping civil society to organize its interventions in advance.
 - d. Promote the signing of agreements that establish the commitment of the armed groups not to interfere in the entry and development of environmental programs, as well as to respect the autonomy of the communities to agree on strategies to contain deforestation and reconvert to forestry economies.
 - e. Ensure the inclusion in the citizen participation agreements and protocols of concrete actions and commitments on prevention and protection for civil society that are linked to the Total Peace policy processes, providing security guarantees to this population.
 - f. Press for the adoption of commitments by the delegations of the armed groups related to respect for the various types of demining operations aimed at the removal of Antipersonnel Mines (*MAP*) and *Unexploded Ordnance (MUSE)* in the territories.
 - g. In coordination with the Unit for the Search for Missing Persons, promote the prompt establishment of agreements and humanitarian actions related to the search for missing persons.
 - h. Continue with the implementation of the Social and Legal Conversation Forums in Buenaventura, Quibdó, Medellín, and the Aburrá Valley, maintaining regular dialogue with the delegations of the urban armed groups and involving civil society and institutions in setting up these processes.
- 9.1.2. Continue strengthening mine risk education and psychological care in territories where the demarcation of dangerous zones has been lost and communities have engaged in unsafe behavior, especially in Antioquia, Cauca, Chocó, Córdoba, and Nariño.

9.2. To the Ministry of Foreign Affairs

In coordination with the Unit for the Search for Missing Persons, establish a cooperation mechanism between Colombia and the OAS member states to promote actions to search for persons reported missing as a result of the Colombian armed conflict through the exchange of information and joint efforts between the countries.

9.3. To the Ministry of the Interior

Strengthen ties and coordination with the Governors' Offices and Community Action Organizations to provide guarantees of participation to the members of the Departmental Community Security Roundtables, including, if necessary, logistical support for their attendance.

9.4. To the Ministry of National Defense

Continue developing strategies to sustain the presence of the security forces, especially in territories where there are disputes between armed groups, in order to guarantee the security and protection of the civilian population.

9.5. To the Ministry of Justice and Law and the Office of the Attorney General of the Nation

To propose initiatives or regulatory amendments for the creation of an integrated transitional justice system that avoids contradictions between mechanisms, contributes to the investigation of macro-criminal patterns, and promotes the transfer of knowledge and methods between the different transitional justice mechanisms.

9.6. To the Ministry of Agriculture and Rural Development

In coordination with the National Land Agency, strengthen citizen and institutional participation and oversight of the Comprehensive Rural Reform and the National Agrarian Reform System, through the implementation of dissemination, monitoring, and evaluation mechanisms that allow for transparency and accountability, especially in connection with land purchases and the establishment of Municipal Agrarian Reform Committees.

9.7. To the Ministry for the Environment and Sustainable Development

9.7.1. Reach agreements with the beneficiary communities of the Forestry Development and Payment for Environmental Services Nuclei on the creation of social leadership groups that facilitate citizen participation and oversight, as well as the design of individual and collective protection strategies for environmental leadership.

9.7.2. Disseminate information regarding the scope of the strategies of the Forestry Development and Payment for Environmental Services Nuclei, subsequent phases of the forest economy, the differences with other conservation programs, execution times, and participants in the process, using simple and accessible formats for the communities.

9.8. To the Office of the Presidential Advisor for Human Rights and International Humanitarian Law

Continue to promote actions within the framework of *CIPRUNNA* to ensure that strategies for the prevention of forced recruitment and the abuse and use of children and adolescents and sexual violence against them promote the protection of safe spaces, offer psychological care, and strengthen coordination with local authorities and civil society.

9.9. To the Peace Agreement Implementation Unit

In coordination with the Office of the Peace Commission Advisor, the Ministry of Foreign Affairs, the Ministry of the Interior, and the Ministry of Equality and Equity, coordinate the inclusion

of the National Action Plan of Resolution 1325 and the Comprehensive Program of Guarantees for Women Leaders and Human Rights Defenders in peace initiatives, talks, and dialogues, establishing partnerships with local, regional, and national women's organizations and the international community.

9.10. To the Missing Persons Search Unit

Within the framework of the National System for the Search for Persons Missing in the Context of and Due to the Armed Conflict, take steps to ensure that the competent judicial and humanitarian entities attend to the cases of victims of forced disappearance that occurred after 2016, especially in the departments of Arauca and Cauca and the district of Buenaventura.

9.11. To the Attorney General's Office and the Unit for the Search for Missing Persons

Optimize inter-agency collaboration and actions, taking into account the value of the experience and knowledge of each of the entities to provide expeditious and coordinated responses in the search for missing persons.

9.12. To the Victims Assistance and Comprehensive Reparation Unit

In coordination with the Ministry of the Interior, strengthen the institutional response in the territories most affected by the armed conflict, through the reformulation of the Public Policy for Prevention and Protection and support for the management of the Prevention and Protection Subcommittees of the National Victims Assistance and Comprehensive Reparation Unit.

9.13. To the Land Restitution Unit

Improve the communication strategy on procedures for reviewing administrative acts denying inscription in the Registry of Forcibly Abandoned and Dispossessed Lands, allowing the affected communities to better understand their rights.

9.14. To the Agency for the Renewal of the Territory

Strengthen the training and qualification processes for citizen participation in the Municipal Community Roundtables for Territorial Transformation, the Special Consultation Mechanisms, and the community oversight bodies for the implementation of the Development Programs with a Territorial Approach. This should guarantee the diverse and equitable representation of civil society in these scenarios.

9.15. To the Illicit Crop Substitution Directorate

With a view to the design and implementation of the Illegalized Economies Substitution Program, identify the lessons learned from the implementation of the Comprehensive National Program for the Substitution of Illicit Crops, especially those related to the scenarios for participation and consultation with the communities.

9.16. To the National Penitentiary and Prison Institute

- 9.16.1. Expand educational services for persons deprived of liberty pertaining to armed groups taking part in the Peace Dialogue Roundtables and in the Social and Legal Conversation Forums, in accordance with the agreements and commitments reached for the improvement of incarceration conditions.

- 9.16.2. Organize working groups with the Penitentiary and Prison Services Unit to address health care requests from persons deprived of liberty pertaining to armed groups taking part in the Peace Dialogue Roundtables and in the Social and Legal Conversation Forums.

LIST OF ACRONYMS AND ABBREVIATIONS USED IN THE REPORT

ACSN - Conquistadores de la Sierra Nevada Self-Defense Forces

AEI - Improvised Explosive Devices

AFP - Final Peace Agreement

AG - Armed Groups

AGC - Gaitanista Self-Defense Forces of Colombia

AICMA - Comprehensive Action against Antipersonnel Mines

ANT– National Land Agency

ART– Territorial Renewal Agency

CFBNT - Bilateral, National, and Temporary Ceasefire

CFBTNT– Bilateral and Temporary National Ceasefire with Territorial Impact

CIPRUNNA - Intersectoral Committee to Prevent the Recruitment, Use, Abuse, and Sexual Violence Against Children Including Adolescents

CNP - National Participation Committee

COP - Colombian pesos

COP16 - Conference of the Parties to the Convention on Biological Diversity.

ECSJ - Social and legal conversation forums

ELN– National Liberation Army

EMC - Central General Staff of the FARC-EP

ERON– National Prison Establishments

FGN- Attorney General's Office

FGCS - Comuneros del Sur Guerrilla Front

ICBF - Colombian Institute of Family Welfare

IHL- International Humanitarian Law

INPEC – National Penitentiary and Prison Institute

JAC – Community Action Boards

JyP – Justice and Peace Law

JEP – Special Jurisdiction for Peace

MAP– Antipersonnel Mines

MAPP/OAS– Mission to Support the Peace Process in Colombia of the Organization of American States

MDP- Roundtable Peace Talks

MUSE– Unexploded Ordnance

MVMV– Oversight, Monitoring, and Verification Mechanism

NNA - Children and adolescents

OAC– Community Action Organizations

OAS - Organization of American States

OCCP– Office of the Peace Commission Advisor

OCAD Paz - Collegiate Body for Administration and Decision-Making

PAN 1325– National Action Plan of United Nations Security Council Resolution 1325 of the year 2000

PIGMLD - Comprehensive Program of Guarantees for Women Leaders and Human Rights Defenders

PIRC– Comprehensive Collective Reparation Plans

PBC– Cocaine Paste

PDET– Development Programs with a Territorial Approach

PNIS– Comprehensive National Program for the Substitution of Illicit Crops

PNN– National Natural Parks

PPL– Persons Deprived of Liberty

PRB– Regional Search Plans

RRI - Comprehensive Rural Reform

GS/OAS - General Secretariat of the Organization of American States

SM-EB - Second Marquetalia-Bolivarian Army

SRC - Groups Eligible for Collective Reparation

TE– Booby Traps

UARIV– Unit for the Care and Integral Reparation of Victims

UBPD - Unit for the Search for Missing Persons

URT– Land Restitution Unit